



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Charles Bloom, Planning and Development Director

Subject: PLTA-25-2 – An ordinance amending Sections 1.4.3, 1.4.4, 5.1.4, 5.7.10 and 5.8.2 of the Unified Development Code to define recreational vehicle parks and campgrounds, designate zone districts for their operation, create specific use standards for recreational vehicle parks campgrounds, and revise manufactured home and parks regulations as necessary.

Date: October 13, 2025

Background:

The item for consideration is a UDC Text Amendment. This is approved by Ordinance. The proposed Governing Body review schedule is as follows:

- Introduction and Referral October 13, 2025
- Public Services Committee October 20, 2025
- Second reading October 27, 2025
- Public Services Committee November 3, 2025
- Third and final reading November 10, 2025

Planning Commission Recommendation:

The Planning Commission considered this item on September 15, 2025, and postponed it to October 3, 2025, to allow further discussion of proposed amendments to the recreational vehicle park and campground development standards, including clarifications to minimum lot area, water and sewer requirements, application of junk and nuisance provisions, and grammatical updates related to spaces occupied for more than 180 days.

At the October 3, 2025, meeting, the Planning Commission unanimously voted to recommend that the Governing Body **approve the proposed text amendment with modifications**. The modifications include removing the minimum lot area requirement, reorganizing the section to clarify that recreational vehicle spaces may not be occupied by vehicles considered junk or a nuisance, requiring water and sewer connections for all spaces, and making grammatical corrections. These modifications are reflected in the attached ordinance.

The October 3, 2025, Planning Commission staff report is also attached and has not been changed.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. October 3, 2025 Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTIONS 1.4.3, 1.4.4, 5.1.4, 5.7.10 AND 5.8.2 OF THE UNIFIED DEVELOPMENT CODE TO DEFINE RECREATIONAL VEHICLE PARKS AND CAMPGROUNDS, DESIGNATE ZONE DISTRICTS FOR THEIR OPERATION, CREATE SPECIFIC USE STANDARDS FOR RECREATIONAL VEHICLE PARKS CAMPGROUNDS, AND REVISE MANUFACTURED HOME AND PARKS REGULATIONS AS NECESSARY.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Cheyenne Unified Development Code (UDC).

Section 2. That on October 6, 2025, the Cheyenne Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment with modifications.

Section 3. That Section 1.4.3 of the UDC is amended to read as follows:

1.4.3 Defined Terms

All words and phrases shall have their ordinary and customary meanings unless the context of the word or phrase indicates otherwise. The following terms shall have the meaning given below, unless the context of the use of the term clearly indicates otherwise based on the Purposes, Intent, Design Objective or other guidance associated with its use in a particular section.

Abutting. A description of proximity where two elements share a common boundary.

Access Point. A driveway, internal access street or similar vehicular entrance or exit to the interior of a block, lot or parcel from a street.

Accessory Use. A subordinate use, clearly incidental and related to the principal use and located on the same property.

Activity Center. Places where economic and social activity are focused. In addition, where the code specifically references PlanCheyenne or references specific types of activity centers described in PlanCheyenne the additional guidance in the Plan may be used to determine the context or applicability of a particular standard.

Adjacent. A description of the proximity of two elements which includes abutting and any surrounding vicinity where the impacts described could be reasonably assumed to extend.

Alley. A low capacity, low speed and minor street or access way typically located on the rear or side of properties and used for access to parking, service areas, accessory buildings or easements and not intended for through traffic.

Antenna. Any exterior transmitting or receiving communication device mounted on a tower, building or structure and used in communications that radiate or capture electromagnetic waves, digital signals, analog signals, radio frequencies (excluding radar signals), wireless telecommunications signals or other communication signals.

Appeal. A written request for a review of any final action or decision allowed by the provisions of this Title.

Applicant. Any person(s), firm, corporation or entity requesting permission or desiring to officially apply for any action regulated by this Title.

Average Daily Traffic (ADT). The total volume of vehicles during a given time period (in whole days greater than one day and less than one year) divided by the number of days in that time period.

Awning. A shelter constructed of non-rigid materials along windows and sidewalks at the first story of a building, and mounted on a supporting framework projecting from and supported by the exterior wall of a building.

Base Flood Elevation. The elevation of the flood having a one percent chance of being equaled or exceeded in any given year.

Berm. A mound of earth designed to provide a screen.

Best Management Practice. A technique, process, activity, or structure used to reduce pollutant discharges in stormwater. BMPs include source control practices (non-structural BMPs) and engineered structures designed to treat runoff. BMPs are most effective when used in combination and selected and designed based on site-specific characteristics.

Bicycle Route. A portion of a system of bikeways designated by appropriate route markers which can be a bicycle trail or bikeway.

Bicycle Trail. A trail or path separated from motor vehicles and designated exclusively for bicycles or shared by bicycles and pedestrians.

Bikeway. A street designed to incorporate bicycle travel through either shared vehicle / bicycle lanes or designated bicycle lanes.

Billboard. A sign structure advertising an establishment, a message, merchandise, service or entertainment which is not located, sold, produced, manufactured or furnished at the property on which the sign is located. Billboard includes Digital Billboard as defined in this code.

Blinking. A form of flashing where the pattern of sudden illumination changes occurs with more than 2 on-off cycles per second.

Block. An area of land that is entirely bounded by streets or other boundary permitted by these regulations where streets are not appropriate based on the context.

Block Frontage. The side or sides of a block that the majority of the lots or tracts face.

BMP Maintenance. Routinely scheduled activities, as well as non-routine repairs that may be required after large storms, or as a result of other unforeseen problems, as necessary to ensure proper BMP function.

Building. Any structure used or intended for supporting or sheltering any use or occupancy.

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use.

Building, Attached. A building having one or more party walls in common with an adjacent building.

Building, Detached. A building having no common wall or structural attachment with another building.

Building, Existing. A building erected prior to the adoption of the ordinance codified in this Title, or prior to the effective date of a provision in this Title, whichever is earlier, or one for which a building permit has been issued, or erected in accordance with this code after its adoption.

Building, Nonconforming. A building existing or one for which a building permit has been issued at the time of the adoption of this code which does not comply with the regulations of the zoning district in which the building is located.

Building, Principal. A building in which is conducted the main or principal use of the property on which the building is situated.

Canopy. A shelter constructed of rigid materials covered with fabric, metal or other material, along windows and sidewalks at the first story of a building, and projecting from the exterior wall, which may be freestanding or supported by a building at one or more points and by columns or posts embedded in the ground at other points.

Caretaker Unit. One or more living quarters or lodging facilities located within a non-residential building for the use of employees of the use. A Caretaker Unit shall not be considered a ‘residential use’ or ‘residential unit’ for the purposes of this code but shall be considered part of the non-residential square footage for the purposes of the code. The combined square footage of all Caretaker Units shall not comprise more than ten (10) percent of the principal use’s building square footage (should dwelling area exceed this amount, the living area shall be determined to be a “Mixed-use Dwelling” and a residential use for the purposes of this code). A Caretaker Unit is allowed as part of the approval of the principal use without any more restrictive approval process than that warranted for the principal use.

Certificate of Compliance. A certificate issued by the Development Office which indicates that the site plan requirements have been met.

Changeable Sign. A sign whose informational content can be changed or altered by manual, electric, electromechanical or electronic means. Changeable signs do not include Digital Billboards as defined in this code.

Change of Use. Change of use constitutes at least one of the following:

1. The proposed use is appreciably different than the current use;
2. There is an increase in the size of the existing building or extent of the use of the land;
3. The use is permitted in the zoning district in which the use is located, but requires more parking than the previous use;
4. The number of vehicle trips generated by the new use is or will be greater than the number of vehicle trips generated by the previous use as determined by the Institute of Transportation Engineers Trip Generation, latest edition;
5. The amount of stormwater runoff or impervious (to drainage) surface area will be increased with the new use.

Channel. A natural or artificial watercourse with a definite bed and banks that conveys continuously or periodically flowing water. Interchangeable terms include creek, drainageway, river, stream, and watercourse.

City Engineer. The City of Cheyenne City Engineer, his designated representative or the City Engineering Department.

Comprehensive Plan. The general plan for land use, transportation, utilities, annexation, and community facilities prepared and maintained by the Commission, and any other more specific plan, program or policy prepared under the guidance of that plan.

Construction, New. Structures for which the construction commenced on or after the effective date of the ordinance codified in this Title.

Construction, Start of. The first placement of permanent construction of a structure (other than a manufactured home), such as the excavation of footings or foundations, or the pouring of slabs or foundations. Permanent construction does not include land preparation, such as clearing, grading and filling, nor does it include the installation of streets and/or sidewalks. For a structure (other than a manufactured home) without a basement or poured footings, the “start of construction” includes the first permanent framing or assembly of the structure or any part thereof on its piling or foundation. For manufactured home not within a manufactured home park or subdivision, “start of construction” means the affixing of the manufactured home to its permanent site. For manufactured home within manufactured home parks or manufactured home subdivisions, “start of construction” is the date on which the structure is to be affixed.

Corner lot. See “Lot, corner.”

Crosswalk. Any portion of a roadway distinctly indicated for pedestrian crossing.

Cul-de-sac. A short dead-end street terminating with a vehicular turn-around area.

Curb Radii. The curved or flared portion of a street curb at driveway approaches or intersections.

Decorative Fence. A fence constructed out of materials such as wood, stone, or metal, or a combination thereof, primarily for aesthetic purposes to enhance the appearance of a property and generally not obstructing the visibility into or out of a property. A decorative fence shall not include chain link, wire, snow fences, or a standard wooden or vinyl privacy fences

Detention. The temporary storage of storm runoff in a stormwater management facility with the goals of controlling peak discharge rates and providing gravity settling of pollutants.

Detention Facility. A detention basin or alternative structure designed for the purpose of temporary storage of stream flow or surface runoff and gradual release of stored water at controlled rates.

Developer. The owner of land proposed for development, or the owner's authorized representative, or any person who causes the following to take place either directly or indirectly: division of property for the purpose of development; sells, leases or develops property, or offers or advertises or otherwise engages in business for the same; or has control or is controlled in such a way to have influence in any of the above.

Development. Any man-made change to real estate, including, but not limited to, the construction of buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling.

Development Footprint. The development footprint is the total land area that is permanently affected by development activities, and includes buildings, structures, hardscape, utilities, roads and parking areas, maneuvering areas, storage areas, areas associated with the use on the property, and areas cleared of natural vegetation and topsoil.

Digital Billboard. A billboard displaying static images controlled by electronic communications.

Dissolve. A transition between digital messages that is achieved with varying light intensity and where the first message gradually appears to dissipate and loses legibility simultaneous to the gradual appearance and legibility of the subsequent message.

Double frontage lot. See "Lot, double frontage."

Drive-in or Drive-up Facility. A portion of an establishment designed for retail or service to persons in automobiles, including a driveway approach, order facilities, signs and delivery windows.

Driveway. A vehicle access way located on private property.

Driveway Approach. A constructed vehicle access point within the right-of-way between the roadway and the adjacent property line.

Dwelling Unit. One or more rooms which are intended for human occupancy as a place of residence with facilities for living, cooking and eating for one family unit, manifesting around one single kitchen, excluding wet bars with no stove or range, and one single laundry facility. Cooking facilities and other accommodations, such as laundry, should be accessible to all occupants of the dwelling through internally connected spaces.

Easement. A permanent or temporary grant of right by a property owner to the public, a corporation or other person(s) for the use of a strip or parcel of land for specified purposes. Ownership shall remain with the property owner.

Electrical Sign. A sign or sign structure in which electrical wiring, connections or fixtures are used. Electrical sign does not include a digital billboard as defined in this section.

Fade. A transition between static message displays that is achieved with varying light intensity and where the first message gradually loses light intensity to the point of not being legible and the subsequent message gradually increases intensity to the point of legibility.

Family Unit. One or more persons who are related by blood, marriage, domestic partnership or legal adoption living together as a single household; or a group of not more than four (4) persons not related by blood, marriage, domestic partnership or legal adoption, living together as a single household.

Fence. A man-made partition, structure, wall or a gate erected as a dividing marker, barrier, enclosure or screening device.

Flag. A sign made of fabric or other non-rigid material with no enclosing framework containing distinctive colors, patterns, or symbols, used as identification for or a symbol of a government, political subdivision, or other entity.

Flashing. A pattern of changing light illumination where the sign illumination alternates suddenly between fully illuminated and fully non-illuminated in a time frame of less than 4 seconds.

Floor Area Ratio (FAR). The total square feet of the building divided by the total square feet of the lot the building is located on.

Foot Candle. A unit of illuminance equal to 1 lumen, uniformly incident upon an area of 1 square foot.

Freeboard. A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. Freeboard compensates for the many unknown factors that could contribute to flood heights greater than the height calculated for the design flood.

Functional turf grass. An area of living turf grass or lawn that is used regularly for human recreational purposes or domestic animal use. Functional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Garage. A building or portions of a building for the storage of automobiles or other property, accessory to the principle use of the site.

Greenway. A linear open space established along either a natural corridor, such as a stream valley, or overland along a road or railroad right-of-way converted to recreational use; a natural or landscaped course prepared for pedestrian or bicycle passage; certain designated strips or linear parks and open spaces connected and designated by the City as part of the Greenway System.

Height. When referring to a tower or other structure, height is the distance measured from the finished grade of the parcel to the highest point on the tower or other structure, including the base pad and any antenna.

High-power Transmission Lines. Transmission lines which carry sixty-nine thousand (69,000) volts or more.

Immediate. A transition between static message displays that is achieved in 2 seconds or less.

Impoundment Yard. A fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, a government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

Improvement. Buildings, structures and all facilities of a public nature indented for public use – including streets, sidewalks, curbs, gutters, alleys and other public ways, parks, recreational facilities, water, sewage, solid waste disposal and other sanitary systems and facilities.

Infill Development. For commercial or residential parcels shall be defined by the following criteria:

1. One parcel surrounded by urban development on at least three sides (does not have to be directly adjacent to); and
2. Served by existing underground sewer and water utilities.

Infiltration. The process of percolating stormwater into the subsoil.

Interior lot. See “Lot, interior.”

Intermittent. A pattern of changing light intensity, other than that achieved with immediate, fade or dissolve transitions, where any message remains static for over 4 seconds.

Intersection. The junction of two streets.

Land Disturbance Activity. Grading, digging, cutting, scraping, or excavating of soil, placement of fill materials, paving, construction, substantial removal of vegetation, or any activity which bares soil or rock or involves the diversion or piping of any natural or man-made watercourse.

Landscape Points System. The point system used for determining the minimum vegetation requirement.

Landscaped Setback. The minimum required landscaping area on private or government-owned property which is adjacent to a property line common to a street right-of-way. Driveways and sidewalks to afford required access shall be allowed to interrupt this required space.

Landscape, Street Tree Area. The landscaped area between property line and the street, within the right-of-way.

Landscaping. Any combination of living plants, such as trees, shrubs, vines, ground covers, flowers or grass; natural features, such as rock, stone, bark chips or shavings; and structural features, including, but not limited to, fountains, reflecting pools, outside art work, screen walls, fences or benches.

Landscaping, Internal. That area that lies within the property lines not covered by buildings, parking, outside storage, sidewalks and driveways.

Landscaping, Xeriscape. A water-saving landscape design that limits turf areas, utilizes mulches, efficient irrigation (often drip or subsurface) and use of native or drought-tolerant plant materials. When done properly, it is as lush and green as traditional landscapes, but has the benefits of lower water use and less maintenance after establishment.

Loading Space. An on- or off-street space for the standing, loading, and unloading of vehicles, people or articles.

Lot. A designated unit of land established by a plat or otherwise as permitted by law, for the transfer of ownership or to be used, developed, or built upon, whether immediate or future.

Low Impact Development (LID). An approach to land development (or redevelopment) that works with nature to manage stormwater as close to its source as possible. LID emphasizes conservation and use of on-site natural features to protect water quality. This approach implements engineered small-scale hydrologic controls to mimic the pre-development hydrologic regime of watersheds through infiltrating, filtering, storing, evaporating, and detaining runoff. The term Green Infrastructure may also be used.

Major Drainageway. Any drainage flow path mapped with an area of special flood hazard on the Flood Insurance Rate Map (FIRM).

Manufactured Home. A structure transportable in one or more sections which, in the traveling mode, is 8 body feet or more in width or 40 body feet or more in length or, when erected on site, is 320 or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air- conditioning and electrical systems contained therein; except that such term shall include any structure which meets all the requirements of this paragraph except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the secretary (HUD) and complies with the standards established by HUD. For manufactured homes built prior to June 15, 1976, a label certifying compliance to the standard for mobile homes, NFPA 501, ANSI 119.1, in effect at the time of manufacture is required.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a person who holds a massage therapist permit pursuant to chapter 5.52, title 5, of the city code.

Moving Light. The physical change in position of any visible illumination source while lighted or the simulation of movement achieves with a pattern of sequentially illuminating visible illumination sources within close proximity to each other.

MS4 Permit. A state or federal stormwater discharge permit to regulate discharges from municipal separate storm sewer systems (MS4s) for compliance with Clean Water Act regulations; used interchangeably with the term National Pollutant Discharge Elimination System (NPDES) permit and collectively referred to as federal stormwater discharge permit.

Nonfunctional turf grass. An area of living turf grass or lawn that is not used regularly for human recreational purposes or domestic animal use. Nonfunctional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Nonpoint Source Pollution. Pollution from any source other than from any discernible, confined, and discrete conveyances, and shall include, but not be limited to, pollutants from agricultural, silvicultural, mining, construction, subsurface disposal and urban runoff sources.

Off-premise Sign. Any sign not identified as a “Billboard” and which is used for the purpose of displaying, advertising, identifying, or directing attention to a business, service, activity or place, including products or services sold or offered for sale, on premises other than the premises where such sign is displayed.

Open Space Systems. A system of various types of outdoor space, designed to function as aesthetic, recreation, and ecological support for development. Elements of the open space system can include private, common, or public open spaces.

Owner. The owner of record of a parcel of land, as recorded in the office of the county clerk.

Parapet. The architectural enhancement in the design of the façade that extends ornamental details above a roof line to the extent necessary to screen the roof and roof-top equipment.

Parcel. A contiguous unit of land owned and recorded as the property of the same persons or controlled by a single entity.

Parking Lot. An area other than a street or alley designated for the parking of five or more motor vehicles.

Parking Space. A space specially designed for the parking of a motor vehicle.

Party Wall. A wall common to two or more units which are intended to be individually owned.

Pedestrian. A person on foot or a self-propelled conveyance intended for use of persons with physical impairments.

Person. An individual, firm, corporation, partnership, or association, or any combination of these, or any other legal or commercial entity acting as a unit.

Pre-existing Towers and Pre-existing Antennas. Any tower or antenna for which a building permit or wireless telecommunications permit (WTP) was issued prior to the effective date of this Title, including permitted towers or antennas that have not yet been constructed so long as such approval is current and not expired.

Public Drainage System. The system of storm sewers, channels, culverts, creeks, flows within public streets, and associated detention and water quality structures owned and maintained by the City of Cheyenne, Laramie County, or the Wyoming Department of Transportation.

Public Land. Land owned, controlled and/or operated by a governmental unit.

Published Notice. A notice provided in accordance with Wyoming Statutes.

Recreational Vehicle (RV). A vehicle or unit primarily designed for human habitation for recreation or travel, which may include a motor home, camper, travel trailer, or park model recreational vehicle.

Redevelopment. The replacement of impervious surfaces on a developed site that is surrounded by urban development on at least three sides. Redevelopment occurs when the existing facilities are demolished and rebuilt or substantially changed through reconstruction. Resurfacing parking lots with no change in overall dimensions or drainage patterns is not considered redevelopment even if the pavement is completely replaced.

Regional Detention Facilities. A system or parts of a system to control run-off from a defined area within a drainage basin and designed to coordinate with other similar facilities to manage the drainage basin and tributaries, typically considering areas greater than 100 acres or capacities of more than 30 acre-feet or as otherwise specified in a drainage master plan or current Storm Drainage Manual.

Remainder Lot. A lot or tract of land designated on a plat which is not eligible for development, or to service adjacent development, and may be reserved for future platting. A remainder lot shall not be for the purpose of sale, lease, or financing; nor be eligible for development. Remainder lots shall not be required to meet the dimensional standards of the zoning district. Developed properties, excluding land developed for agricultural purposes, are not eligible to be remainder lots. Remainder lot(s) must be referred to as “outlots”, “remainder lots”, or “tracts” on plats.

Right-of-way. Land dedicated and set aside for use by the public, primarily for the right of vehicle or pedestrian travel, but typically designed to include multiple and other public purposes.

Roadway. That portion of a street designed and intended primarily for vehicles.

Sanitary System. A sewer system or systems including mechanisms of collection, treatment and disposal of domestic and/or commercial sewage.

Screening. A feature used to visually separate elements on abutting or adjacent development sites.

Self-Contained Unit. A recreational vehicle equipped with its own water supply, sanitary facilities, and wastewater containment, capable of independent habitation without reliance on shared utilities, except for electrical or water hookups.

Sidewalk. That portion of a street designed and intended primarily for use of pedestrians.

Sign. Any announcement, declaration, demonstration, display illustration or insignia, or other identification, that is visible from any public place or is located on private property and exposed to the public and that directs attention to a product, service, place, activity, person, institution, business or solicitation, including structures that exist to support or enhance the sign.

Sign, Animated. A sign that uses movement or change of lighting to depict action or create a special effect or scene.

Signs, Building Marker. A sign indicating the name of a building, a date and incidental information about its construction, cut into a masonry surface or made of bronze or other permanent material.

Sign, Abandoned. A sign which no longer identifies or advertises a bona fide business, service, owner, product, or activity, and/or for which no legal owner can be found.

Sign, Electronic Message Center. A sign where alphabetic, pictographic or symbolic informational content can be changed or altered on a fixed display surface composed of electrically illuminated or mechanically driven, changeable segments.

Sign, Government. A sign erected and maintained by the United States or state of Wyoming, or any political subdivision thereof, for traffic direction or for designation of or direction to any school, hospital, historical site or public service, property or facility.

Sign, Nameplate. A sign giving only the name, address and/or occupation of an occupant or group of occupants.

Sign, Portable. A sign not permanently attached to the ground or other permanent structure, or a sign designed to be transported, including, but not limited to, signs designed to be transported by means of wheels, signs converted to A- or T-frames, and balloons used as signs. "Portable sign" shall not include umbrellas used for advertising, signs carried by individuals, and signs attached to or painted on vehicles parked and visible from the public right-of-way when such vehicle is used in the normal day-to-day operations of a business.

Site Plan. A plan of the land showing the existing and proposed features for the property.

Static. Having no motion within a particular message or copy displayed on a digital billboard.

Storm Sewer. An underground pipe system that carries stormwater from streets and other surfaces and discharges directly to a pond, stream or river; used interchangeably with the term “storm drain.”

Stormwater Management. Anything associated with the planning, construction, maintenance, or regulation of facilities which collect, store, convey or treat stormwater.

Storm Water Pollution Prevention Plan (SWPPP). A written plan required under state and federal stormwater discharge permits identifying measures that will be implemented to minimize the discharge of pollutants in stormwater. Requirements for SWPPPs are specified in state and federal discharge permits. Requirements vary depending on whether the discharge permit is associated with municipal, industrial, or construction activities.

Stormwater Retrofit. A stormwater management practice designed for an existing development site that previously had either no stormwater management practice in place or a practice inadequate to meet the stormwater management requirements of the site.

Stormwater Runoff. Also known as Stormwater, means flow on the surface of the ground, resulting from precipitation. Interchangeable terms include drainage and runoff.

Street. Any public way for the movement of vehicular and pedestrian traffic which is an existing federal, state, county or municipal roadway; or a right-of-way shown upon a plat, and approved pursuant to law, whether improved or unimproved, and may comprise pavement, shoulders, curbs, gutters, sidewalks, parking areas and other areas within the right-of- way.

Street, Arterial. Refers to the functional classification of a street in the entire transportation network, which has considerable continuity over long distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Collector. Refers to the functional classification of a street in the entire transportation network, which has moderate continuity over medium distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Local. Refers to the functional classification of a street in the entire transportation network, which has limited continuity except for short distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Structure. That which is built or constructed, an edifice, or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

Tiedown. Any device designed to anchor a manufactured home or any other accessory building or structure to the ground.

Temporary Use. A use or activity that is intended to occupy the site on a non-continuous basis for more than 14 days.

Tower. Any structure that is designed and constructed primarily for the purpose of supporting one or more antennas for telephone, radio and similar communication purposes, including self-supporting lattice towers, guyed towers or monopole towers. The term includes, but is not limited to, radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures and any tower support.

Tract. A unit of land established by a plat or otherwise as permitted by law, designated for limited or no development as part of an approved plan for a legitimate public or community purpose and designated for public or common ownership and maintenance.

Traffic-control Devices. Signs, signals, markings, or other approved geometric designs in the roadway approved by the public body or official having jurisdiction for the purpose of regulating, warning, guiding, or calming traffic.

Triple frontage lot. See “Lot, triple frontage.”

Unit Space. A designated portion of a manufactured home park for the accommodation of one manufactured home.

Urban Drainage and Flood Control District (UDFCD). The metropolitan Denver drainage organization.

Utilities, Essential Services. Those utility facilities that provide end user services to customers. They include local distribution and collection lines for gas, electricity, water, sewer, telephone or cable TV services throughout neighborhoods and connect with each customer. They consist of cables, wires or pipes with limited capacities and the associated hardware, such as transformers, relays and shut-off valves. They also consist of traffic-control boxes and traffic signal installations.

Utility Facilities. Any utility facility, whether or not regulated by the Wyoming Public Service Commission, not described as an essential service utility.

Wall, Retaining. A physical barrier necessary to prevent erosion and/or retain earth.

Water Quality Capture Volume (WQCV). Represents runoff from frequent storm events such as the 80th percentile storm. The volume varies depending on local rainfall data. The WQCV is based on runoff from 0.6 inches of precipitation (approximately 0.5 inches of runoff).

Water System. A public or private system of providing potable water to a structure for domestic use.

Woonerf. A street designed for use by pedestrian and vehicular traffic, where the pedestrian has the right-of-way.

WyDEQ. The Wyoming Department of Environmental Quality.

Section 4. That Section 1.4.4 of the UDC is amended to read as follows:

1.4.4 Descriptions of Uses of Land and Buildings

This section contains general descriptions associated with the uses of land and buildings. It is organized according to categories of uses and specific types of uses within each category. These categories and types correspond to the Use Table in Article 5, Zoning Regulations. Where a use appears to meet two or more descriptions or where a use is not described, the Director shall make a determination. If a use meets all of the characteristics of a use category and use type, or is so similar to a described use type as to create no anticipated differential impact, the Director may interpret that the described use includes the additional use. In making this determination, the Director shall compare: (a) the intensity and scale of the use relative to the site; (b) the typical site and building designs associated with the use; (c) the functional or operational characteristics and the potential impacts of the use on adjacent property; and (d) the potential contribution of the use to the overall character of the district or districts in which the comparable use is allowed. All other uses which cannot be interpreted in this manner are different from the described uses, are not anticipated by these regulations, and may only be allowed by a zoning text amendment.

- a. **Residential Uses.** The Residential use category is for all types of dwelling units used for permanent residence, including a variety of lot types, building types, and unit types, that may vary in the kind and classes of buildings based on the character of the neighborhood.

Attached Dwelling (“Townhouse” / “Rowhouse”). A Residential use in a building designed with a series of attached principal dwelling units separated by a single common wall. Each unit is typically situated on its own fee simple lot where party walls are used, but buildings or grounds may be owned in common. Each unit has the same orientation and front façade, and has its own private entrance to the exterior of the structure.

Detached Dwelling. A Residential use in a detached building designed as a single principal dwelling unit and situated on its own fee simple lot.

Semi-attached Dwelling (“Duplex”). A Residential use in a detached building designed as two principal dwelling units. It may be designed as a “paired house,” matching the appearance of a house, or it may be designed as a “flat-over-flat,” matching the appearance of a small apartment building. A duplex is situated on its own fee simple lot, but each unit of a side-by-side paired house may be platted on an individual lot if party walls are used.

Cottage Lot. A Residential use utilizing detached dwellings, semi-attached dwellings, or attached dwellings designed to face a common area (typically open space) with other shared facilities (such as shared public street access, shared parking, shared trash collection, etc.). Individual dwelling units may be on fee simple lots, a condominium, or on one larger ownership parcel. A cottage lot is also known as “bungalow court” or “cottage court”. Cottage lots are subject to the provisions of UDC Section 6.6.5.

Group Housing. A residential use, Group Housing is the provision of in-home, 24-hour, 7-days a week custodial care for from 1 to 6 individuals living together as a single

housekeeping unit in a single-family, detached dwelling unit. This maximum number excludes staff. This use does not include a household where custodial care is provided by a family member to from 1 to 6 persons in a single-family, detached dwelling unit. Custodial care includes the provision of in-home personal assistance, housekeeping service, supervision, and limited medical assistance to a resident or residents. Examples of Group Housing include, but are not limited to, homes for elders and disabled or mobility-impaired persons, homes for rehabilitation from drugs or alcohol addiction, or homes for formerly incarcerated persons. The Group Housing use is subject to the provisions of Section 5.7.5.d and e of the UDC.

Dormitories. A Residential use in a building that provides sleeping accommodations for a number of people.

Multi-dwelling Building (“Apartment”). A Residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type includes a variety of variations based on the permitted building scale, including “stacked flats” (3-story/tri-plex), “six-plex” (paired stacked flats), or larger apartment buildings.

Live/Work. A primarily residential use in a building designed for two principal uses, where a portion is designed for residential dwelling use, and a portion is designed for a limited non-residential use to support the occupation or vocation of the resident of the dwelling unit. The non-residential portion is limited to the 1st story and less than 50% of the total floor area of the building. The building is situated on its own fee simple lot but may be attached or detached based on zoning district standards and context.

Mixed-use Dwelling. A Residential use in a building designed for a mix of uses with office or retail on the 1st story / street-front and residential uses on the upper stories where the dwelling units are not accessory to the non-residential uses. Mixed-use buildings may be either small- or large-scale, with larger scale buildings, depending on the context and zoning district standards, and typically being broken into multiple fee simple lots with party walls, but the dwelling units may be owned in fee simple, as condominiums, or apartments.

Accessory Dwelling. A separate dwelling unit that is associated with, incidental to, and subordinate to another dwelling unit as the principal use, and is located on the same lot as the principal dwelling (commonly referred to as “In-laws Quarters” or “Garage Apartment”).

Urban Loft Building. A residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type contemplates a taller multifamily building, often with parking structured or at grade with the building above, located in a walkable, mixed use context.

Manufactured Home Park. See “Manufactured Housing Park”.

Manufactured housing parks. An area of land under one fee ownership, where designated spaces for manufactured ~~home~~ homes are rented for use as a principal dwelling unit, and which may provide associated facilities for common use.

Campground. A Service Use accommodating overnight stays in tents, cabins, or other non-motorized shelters.

Combined Manufactured Housing Park. A Residential Use comprised of a manufactured housing park that, in addition to accommodating manufactured homes, has been licensed and has maintained a license, by the city/county health department to allow recreational vehicles to occupy independent spaces on the same site. Such facilities are recognized as nonconforming uses and may not be established in the City.

Recreational Vehicle Park. A Service Use providing accommodations for recreational vehicles, travel trailers, motor homes, dependent travel units, and park model recreational vehicles.

- b. **Civic Uses.** The Civic use category includes uses serving a broad and general public and community interest to enhance daily cultural, social or recreation opportunities for area landowners and residents. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be integrated in to these areas with the appropriate level of civic design. The Civic use category may contain uses that are either public and accessible to all citizens; common and accessible by rights associated with ownership; or private and accessible by membership or general association.

Neighborhood Assembly (<350 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare of nearby residents. Neighborhood Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 350 people for any one event. Common examples include meeting halls, neighborhood association club houses, or smaller neighborhood churches.

Community Assembly (350 -1000 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare for citizens in the general vicinity. Community Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 1000 people for any one event. Common examples include community centers, museum, or large churches. [For larger assemblies see Entertainment, Venue].

Cemeteries. A Civic use where land is used for the burial of the deceased, both human and animals, and dedicated for internment purposes, including columbaria, crematoria, mausoleums and mortuaries when operated in conjunction with and within the boundary of such cemetery.

Primary and Secondary Schools. A Civic use where buildings and facilities are used for the education and instruction of K through 12 students.

Educational Facilities. A Civic use where buildings and facilities are used for the education and instruction of post-secondary students, non-traditional students, or continuing education for adult or general population.

Community Athletic Field. A noncommercial facility for active outdoor recreation and organized sports, including a facility which is an accessory use to a school, but excluding any facility with lighted fields or permanent buildings for refreshment stands, locker rooms or shower facilities.

Developed Athletic Field or Stadium. A facility for active outdoor recreation and organized sports which includes lighted fields, permanent grandstands, or permanent buildings for refreshment stands, locker rooms or shower facilities.

- c. **Service Uses.** The Service use category is for businesses engaged in the exchange of professional skills, advice, personal care or other resources, and the nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, and where lots or buildings may require access or exposure to the public-at-large.

Service Business – Limited. A Service use that primarily supports adjacent residential uses by providing daily services for the convenience of residents, and involving less than 3,000 square feet of gross leasable area. Examples include post office, bank outlet, barber shop or beauty salon, tailor, or other similar services.

Service Business – General. A Service use that provides support for adjacent residential uses or businesses which may involve more than 3,000 square feet of gross leasable area. Examples include copy centers, large banks, or any other similar services that exceed the scale of Service Business – Limited.

Assisted Living Facility / Nursing Home. A Service use / institutional occupancy providing residential accommodations for 7 or more persons to meet the needs of the aging, semi-dependent or dependent population in a residential environment, together with recreation and support services and facilities for the benefit of the residents and where any permanent on-site staff is accessory to the primarily residential use. On-site skilled nursing care or medical facilities may be provided. An Assisted Living Facility/Nursing Home use is subject to the provisions of Section 5.7.5 of the UDC. An Assisted Living facility/Nursing Home use, pursuant to this definition, does not include a Group Housing use or site. An Assisted Living Facility/Nursing Home operation may take place within a residential or a non-residential structure.

Animal Care, Kennel. A Service use where domestic animals are boarded, bred or sold as a primary business. *Animal Care, Hospital / Clinic.* A Service use where animals are admitted for examination, treatment, or health care by a doctor of veterinary medicine, which may include kennels, runs or other accessory accommodations.

Family Child Care Home (FCCH). A Service use where preschool care and education is provided for up to 10 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Family Child Care Center (FCCC). A Service use where preschool care and education is provided for up to 15 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Child Care Center (CCC). A Service use where preschool care and education is provided for children on a regular basis not located in any person's residence.

Emergency Shelter. A facility, which provides shelter or overnight accommodations and incidental support services for persons experiencing homelessness and/ or families on a short-term basis.

Entertainment, Indoor Recreation Facility. A Service use where facilities for indoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples of uses include bowling alleys, pool halls, roller skating rinks, swimming pools, movie theaters, video or similar gaming venues, racquetball courts, or fitness clubs.

Entertainment, Outdoor Recreation Facility. A Service use where facilities for outdoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples include racetracks, driving ranges, music performance venues, or other outdoor entertainment venues.

Entertainment, Venue. A Service use where music concerts, floor shows or other forms of entertainment, performances or presentations by persons are provided indoors for guests or the general public, which may include accessory dining, bar, and similar refreshment services. Examples include concert halls, theatrical performance art centers, dinner theaters, other food or beverage-serving establishments providing live entertainment venues, banquet halls, or auditoriums.

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as off-track betting, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Lodging, Bed and Breakfast. A Service use where up to six guest rooms are rented, generally for short-term occupancy for sleeping, together with limited facilities for the accommodations of guests in a home-like atmosphere.

Lodging, Hotel or Motel. A Service use where six or more guest rooms are rented, generally for short-term occupancy for sleeping, together with incidental meeting rooms, restaurants and recreation facilities for the primary benefit of the guests.

Medical Care, Clinic. A Service use where physicians, dentists, or other health care professionals are associated for the purpose of carrying on their professions. A health clinic may include a dental or medical laboratory, after hours emergency care, but it may not include in-patient care or operating rooms for major surgery.

Medical Care, Office. A Service use where physicians, dentists, or other health care professionals carrying on their professions. A medical office may include a dental or medical laboratory, but may not include in-patient care or operating rooms for major surgery and may not be open for after-hours emergency care.

Medical Care, Hospital. A Service use providing health services, primarily for inpatients, and medical or surgical care of the sick or injured, including as an integral part of the institution such related facilities as laboratories, outpatient departments, training facilities, central service facilities and staff offices.

Mini Storage. A Service use where a building or group of buildings in a controlled access and fenced compound that contains varying sizes(s) of individual, compartmentalized and controlled-access stalls or lockers for the storage of a customer's goods or wares. Mini Storage may include individual units accessed from inside of a building offered for rent or lease for the storage of personal property. It may also include parking areas for the storage of vehicles, trailers, recreational vehicles, boats, snow mobiles and other similar items as an accessory use. Outdoor storage, or the storage of junk, explosives, or flammable materials and other noxious or dangerous materials are specifically prohibited.

Storage, Yard. A Service use where exterior yards are leased for the outdoor storage of large-item personal property such as boats or recreational vehicles.

- d. **Employment Uses.** The Employment use category is for businesses engaged in administrative, clerical, and professional operations and support, where products or services are of the nature that generally, when compared to Retail Use Types, do not require daily on-premise interactions with the clients, customers or patrons, and where lots and buildings are not primarily designed to maximize exposure to the public-at-large.

Home Occupation. A business which is carried on entirely within a legal or legal non-conforming dwelling or allowed accessory building, and which is clearly incidental and secondary to the use of the premises as a dwelling.

Office - Limited. An Employment use which is not an accessory to another use, but limited individual units of gross leasable area are less than 3,500 square feet, and where each owner or tenant typically employs less than 20 employees on premises. Examples include small-scale professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which can operate within the unit square footage and employee limits of this category.

Office - General. An Employment use where individual units of gross leasable area are between 3,500 and 20,000 square feet, and where each owner or tenant typically employs between 20 and 100 employees on premises. Examples include large professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which exceed the Office - Limited category, or other moderate size business or corporate employment operations.

Major Office or Office Complex. An Employment use where individual units of gross leasable area may be more than 20,000 square feet in a single building or group of buildings, and each owner or tenant may typically employ more than 100 employees on premises. Examples include major professional service firms or large corporate offices.

- e. **Commercial Uses.** The Commercial use category is for businesses engaged in the exchange of merchandise for general consumers, and nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, where lots or buildings are primarily designed for exposure to the public-at-large.

Convenience Retail / Corner Store (<2k). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 2,000 square feet of gross leasable area. Convenience Retail / Corner Store uses are characterized by target market areas of less than 1/4 mile radius for most of its on-premise sales or are associated accessory to an employment or service business.

Neighborhood Retail (<5K). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 5,000 square feet of gross leasable area. Neighborhood retail uses are characterized by a target market area of less than 1/2 mile radius for most of its on premise sales.

General Retail (5K - 25K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise, and consumer products and involving between 5,000 and 25,000 square feet of gross leasable area. General Retail uses are characterized by a target market area of less than 1 mile radius for most of its on-premise sales.

Large-scale Retail (25K - 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise or general consumer products and involving between 25,000 and 100,000 square feet of gross leasable area. Large-scale Retail uses are characterized by a target market area that may be greater than 1 mile radius for the on- premise component of its sales.

Warehouse Retail (> 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty products, general consumer products, or wholesale products and involving greater than 100,000 square feet of gross leasable area. Warehouse Retail uses are characterized by a target market area that may be more than 1 mile radius for most of its sales.

Grocery Store (<45K). A Commercial use engaged in the retail sale of a broad range of food products and limited household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A grocery store involves less than 45,000 square feet of gross leasable area and is characterized by a target market of less than 1-mile radius.

Supermarket (> 45K). A Commercial use engaged in the retail sale of a broad range of food and household products for consumption off premises, although some limited areas may be dedicated to the on- premise sale and consumption of food. A supermarket typically

involves more than 45,000 square feet of gross leasable area and is characterized by a target market of greater than 1-mile radius.

Outdoor Sales, Limited. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 10% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one-week at a time with at least 4 weeks between consecutive events.

Outdoor Sales, Seasonal. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted

Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 20% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one month at a time with at least 2 months between consecutive events.

Outdoor Sales, Event or Display Area. The display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use that does not meet the limitations of Limited or Seasonal Outdoor Sales, and which may require areas to be designed and dedicated for display when part of the permanent operations of an interior retail business. Examples include lumber yards and garden centers.

Outdoor Sales. The display and sale of merchandise where the primary business is generated by merchandise displayed permanently and year round on an exterior portion of the site. Examples include automobile sales and implement sales.

Bars. A Commercial use primarily engaged in serving alcoholic beverages for consumption on-premises. Any food or entertainment services are generally secondary or accessory to the business.

Liquor Store. A Commercial use engaged primarily in the retail sale of alcoholic beverages for consumption off-premises. The sale of food or accessory beverage supplies are generally secondary or accessory to the business.

Automobile Service Repair. A Commercial use engaged in the repair, maintenance, condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Automobile Service Station – Limited. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services. This use is limited to no more than 2 fuel pump islands and no more than 8 fueling stations.

Automobile Service Station – General. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use is limited to no more than 4 fuel pump islands and no more than 16 fueling stations.

Automobile Service Station – Large-scale. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use may have more than 4 fuel pump islands and more than 16 fueling stations.

Food Service – Limited (< 2K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including less than 2,000 square feet of seating area.

Food Service – General (2K – 4K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including between 2,000 and 4,000 square feet of seating area.

Food Service – Large-scale (> 4k). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on site and including more than 4,000 square feet of seating area.

- f. **Industrial Use Category.** The Industrial use category is for businesses engaged in manufacturing, fabrication, warehousing, processing, wholesale or disposal of goods, products and component parts, and services related to these businesses. These uses typically belong in a special district due to their inability to blend with the uses from other use categories, except when occurring at the smallest scale.

Data Center. A use consisting of buildings or structures specifically designed or modified to house networked computers and data and transaction processing equipment and related infrastructure support equipment, including power and cooling equipment. A data center may be used to provide data and transaction processing services, outsource information technology services and/or computer equipment colocation services. A data center may also include buildings or structures that support the operation of the data center including retrofit buildings, warehousing for logistics, independent network buildings, buildings for support staff, and emergency generators. A Data Center shall not include activities which consistently produce noise discernable at the property line. Should a Data Center produce noise discernable at the property line, it shall be classified as an Industrial use.

Limited Industrial. An Industrial use where small-scale activities produce no byproducts such as smoke, odor, dust or noise discernable from the outside of the building in which it is located. Individual facilities typically occupy less than 10,000 square feet of gross leasable area and distribution and deliveries are commonly made by general consumer delivery services, requiring no significant truck access. A retail, showroom, or service component is often associated with the use. Examples include artist studios, metal and wood shops, arts and crafts manufacturing, small appliance or machine repairs, or other small-scale assembly of finished parts or products from previously prepared materials.

Moderate Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from outside of the building in which it is located. Distribution and deliveries can occur from general consumer delivery services or limited commercial truck access. Examples include research labs or facilities, small electronics or computer assembly and manufacturing, furniture assembly.

General Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from beyond the property boundary. Operations may require commercial vehicle access for distribution and deliveries. Examples include non-animal food processing, commercial warehouses or wholesale distribution centers or energy industry services.

Industrial. An Industrial use capable of producing significant byproducts discernable from outside the building and property including noise, odors, or other potentially offensive materials. Operations may require substantial commercial vehicle access for distribution and deliveries. Examples include food-processing involving animals (large-scale), metal or chemical manufacturing, and data centers which consistently produce noise discernable at the property line.

Limited Outdoor Storage. A use where less than 50% of the lot is used to store equipment and other materials customarily used in the operations associated with the principal use of the property in an unenclosed area.

Outdoor Storage. A use not classified as Limited Outdoor Storage where property is used to store equipment, vehicles, or other materials in an unenclosed area.

Impoundment Yards. An industrial use where a government agency establishes and operates a fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, the government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

Salvage Yards. An Industrial use where materials are extracted from unusable equipment, structures, or vehicles and stored for future use or resale.

Junk Yards. An Industrial use where waste or used material are bought, sold, exchanged, stored or processed for disposal.

Pet Crematory. An Industrial use where land and buildings are used for the preparation and processing of deceased domestic animals.

Air Cargo Terminals. An Industrial use where land and buildings are used for the storage of airplanes, airplane cargo or other facilities associated with air transportation or air shipping.

Aircraft Sales, Repair, Service, Storage. An Industrial use where land and buildings are used for keeping inventory related to aircraft sales or for the storage and maintenance of aircraft.

Railroad Yards and Maintenance Buildings. An Industrial use where land and buildings are used for the storage of rail cars, rail cargo or other facilities associated with rail transportation or rail shipping.

- g. **Public Service Uses.** The Public Service use category is for businesses or government entities engaged providing technical and operational services that serve the general public and community interest to enhance general health, safety, welfare and convenience for landowners and residents, and that serve interests beyond the specific site or facility. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be buffered from the adjacent areas they serve with the appropriate site design, or alternatively which can be located in special purpose districts and still serve the public interest.

Commercial or Public Parking Facility. A Public Service use where land and buildings are used for hourly or daily parking of passenger vehicles that serves other uses, sites and buildings in the vicinity. The parking services may be owned by the government or owned and operated as a business.

Government Facility. A facility or area of land controlled and/or operated by a government entity to aid in providing a service to the citizens under the jurisdiction of that entity.

Military. A Public Service use where land and buildings are used for operations of the United States Armed Forces.

Recycling Services. A Public Service use where land and buildings are used for the public drop-off, storage, and packaging of recyclable materials. Processing may occur on site, or materials may be shipped to other industrial sites for further processing.

Transportation Facilities. A Public Service use engaged in the business of offering transportation services to the public, such as airport terminals, bus stations, train stations, taxi stations, parking garages, bicycle depots or similar facilities for common storage personal vehicles or common boarding of public vehicles.

Utility Stations. A Public Service use where land is used for the concentrated location of fixed equipment necessary to serve adjacent areas with utility service, including other accessory buildings and facilities essential to the operation of the equipment.

- h. **Agriculture Uses.** The Agriculture use category is for uses that are commonly associated with an agrarian or rustic lifestyle, and which demand little or no public infrastructure or services.

General Agriculture. The production of grain, animals, food and fiber; the science and art of farming and ranching; and the work of cultivating the soil, producing crops and raising livestock. General Agriculture specifically excludes concentrated feeding operations where

swine are confined, fed and maintained for 45 consecutive days or more in any 12-month period.

Limited Agriculture. The production of grain, animals, food and fiber on a small scale where any impacts on potential adjacent property from storage, operations, and equipment can be internalized into the site or buffered from abutting areas, typically not occurring on lots or parcels larger than 10 acres.

Agricultural Equipment and Supply. An Agriculture use where the land and buildings are used for retail sales of equipment and materials used for agricultural-related land uses, and accessory servicing of agriculture equipment.

Agriculture Product Sales / Farmers Market. An Agriculture use where land and buildings are used for the retail sale of agricultural products and operated without any additional or permanent site facilities than are otherwise associated with agriculture use. Road side stands, truck sales, or barn sales are examples of such uses, however the intensity and frequency of such sales shall be so that no additional parking, roads, structures, warehouses, or other storage facilities are necessary on the site.

Arenas and Show Barns. An Agriculture use where the land and buildings are used for show or sale of livestock, and where the public can attend these and other related activities.

Commercial Stables. An Agriculture use where land and buildings are used for the business of boarding horses, donkeys, mules, burros, llamas or other similar equine animals.

Nurseries, Landscaping. An Agriculture use to grow plants of any kind for transplanting to another location or for sale as live plants rather than as crops, including the sale of related equipment and supplies.

Section 5. That Section 5.1.4 of the UDC is amended to read as shown in Attachment A which is attached hereto and incorporated herein.

Section 6. That Section 5.7.10 of the UDC is amended to read as follows:

5.7.10 ~~RESERVED~~ Recreational Vehicle Parks and Campgrounds

In districts where recreational vehicle parks and campgrounds are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. All property lines and street frontages shall have a level 2 landscape buffer as specified in UDC 6.3.5.b.
- b. Accessory uses such as laundry buildings, service retail stores, manager's offices, storage buildings, caretaker facilities, cabins, and other uses common with recreational vehicle parks and campgrounds shall be permitted.

- c. A network of vehicular accessways shall be provided and individual sites shall not have direct access to a public street. All accessways shall be paved with either asphalt, concrete, permeable pavers, or a combination thereof. Accessways shall not encroach into a required landscape buffer, except as necessary to provide access to the site.
- d. A developed outdoor recreational area(s) shall be provided and shall be at least 10% of the gross development area or 4,500 square feet, whichever is greater. Outdoor recreational spaces shall be comprised of playgrounds, picnic areas, trails, sports facilities, and similar amenities.
- e. One fenced pet area(s) per acre of developed site shall be provided and shall be at least 700 square feet in area.
- f. At least one (1) canopy tree within fifteen (15) feet of each space shall be provided.
- g. Designated areas for tents or cabins shall provide a minimum campsite area of five hundred (500) square feet per tent or cabin. Campsite areas may be consolidated when tents or cabins are clustered, provided that the required square footage per unit is maintained, and the area is exclusive of drive aisles, parking spaces, or common access ways.
- h. No recreational vehicle occupying any recreational vehicle space shall have permanent additions of any kind. Skirting of recreational vehicles is permissible provided such skirting shall not attach the recreational vehicles permanently to the ground.
- i. Each recreational vehicle space shall have water and sewer service available for connection at the individual recreational vehicle site.
- j. No recreational vehicle space shall be occupied by a recreational vehicle classified as a nuisance pursuant to section 8.60.080 of municipal code.
- k. Spaces occupied for more than one hundred and eighty (180) consecutive days shall:
 - 1. Be permitted only within designated long-term stay areas of the recreational vehicle park,
 - 2. Include one detached individual storage structure per space, not exceeding 160 square feet in floor area. All storage structures shall be approved in conjunction with a site plan and designed with consistent materials, colors, and architectural elements to ensure a unified appearance
 - 3. Only be occupied by units that:
 - i. Are skirted with materials designed for weather protection and visual uniformity,
 - ii. Are self-contained units,
 - iii. Are manufactured within the last 20 years,
 - iv. Display a valid Recreation Vehicle Industry Association (RVIA) certification seal verifying compliance with the applicable ANSI or HUD recreational vehicle construction standards in effect at the time of manufacture,
 - v. Do not be occupied by a recreational vehicle classified as a nuisance pursuant to section 8.60.080 of municipal code, and
 - vi. Do not have permanent additions, such as room extensions, porches, or attached garages or carports

1. Recreational vehicle parks not meeting the definition of temporary use per this Code shall comply with the development standards of this section.

Section 7. That Section 5.8.2 of the UDC is amended to read as follows:

5.8.2 Manufactured Homes and Parks

- a. **Generally.** Housing that meets the definition of a manufactured home shall be permitted in any residential district provided it meets the specific standards of this section, the standards for that district and all other applicable construction standards.
- b. **General Standards.** Manufactured housing parks shall be permitted only as a use requiring public hearing in any residential district or as a planned unit development, and shall meet all other applicable requirements of the zoning district.
 1. Any property to be used as a manufactured housing park shall comply with the minimum standards governing the parks as adopted and maintained by the Department of Public Health for the state of Wyoming and only after certification of compliance and a permit have been duly issued.
 2. Any property to be developed as a manufactured housing park shall be platted as required by the subdivision regulations for the City.
 3. Each house placed in a park or portion of a park developed after the adoption of this code shall have a data plate affixed to it.
 4. Skirting. All houses shall be skirted with a rigid material. Skirting shall be in place within 30 days after the house is set on the space. Skirting shall provide entry access.
 5. Utilities. All spaces in the park shall be provided with utilities meeting standards specified by City, board of public utilities and state regulations and inspected for compliance with those regulations. Each house shall be properly connected to those utilities.
 6. Common Storage Areas. Areas within the park for the storage of boats, trailers, campers and recreational vehicles shall be provided. They shall be screened from adjacent residential properties.
 7. Dimensional Standards. All parks and spaces within parks shall meet the following dimensional standards. Each unit space within the park shall have its boundaries clearly delineated. Accessory structures excluding carports, or any other structure that is open on two or more sides, shall meet these standards.

TABLE 5-6: PARK AND DWELLING SITE DIMENSION STANDARDS		
Dimension		Minimum Requirement
<i>Minimum Total Area</i>		5 acres
<i>Park Density</i>		9 units per acre for units up to 750 square feet; 7 units per acre for units over 750 square feet
<i>Lot space area per dwelling unit</i>		3,000 square feet
<i>Lot frontage per dwelling unit (frontage)</i>		32'
<i>Setbacks*</i>	<i>Front</i>	10'
	<i>Side</i>	15' on main entry side; 20' total both sides (may be allocated to one side for zero-lot line lots)
	<i>Public Street</i>	25'
	<i>Other Dwelling</i>	20'

* In instances where the zoning district setback requirements are more restrictive, the district standards shall be used as the minimum setbacks from all property lines.

- c. **Roadway Standards.** Park roadways shall be paved and meet the following dimensional standards:

TABLE 5-7: ROADWAY DIMENSION STANDARDS	
Roadway Type*	Minimum Requirement
<i>One-way streets</i>	38' roadways 28' of pavement
<i>Cul de sacs</i>	400' maximum length from start to center point of turning circle 35' roadway 25' pavement
<i>Other Roadways</i>	40 feet roadways 32 feet pavement

* Any street that connects two public streets shall be built to the standards of Article 4, Section 4.3.

- d. **Walkways, lighting and parking standards.**

1. Walkways. All houses shall be connected to the adjacent park roadway via a hard-surfaced walkway. The vehicle parking pad may be used as a portion of this walkway. Hard-surfaced walkways shall be provided within the park roadway as follows:
 - (a) Minor park roadways (roadways serving 25 units or less) shall have a walkway on at least one side of the park roadway.
 - (b) Major park roadways (roadways serving more than 25 units) shall have a walkway on both sides of the park roadway.

2. Lighting. All park roadways and walkways shall be adequately lit to provide for the safety of park residents.
3. Parking. Two off-street parking stalls shall be provided per unit space.
- e. Recreation Space. For the purposes of this section, “recreation space” is defined as an area of land that is available to park residents for recreational activities. It does not include roadways, storage areas or yards. For parks with more than 25 spaces, or additions to those parks, recreation space shall be provided as follows:

TABLE 5-8: RECREATION SPACE	
<i>Average Lot Size</i>	<i>Required Recreation Space</i>
<i>3000 to 3,999 square feet</i>	8% of gross park area
<i>4,000 to 4,999 square feet</i>	4% of gross park area
<i>5,000 square feet or more</i>	No requirement

- f. **Existing Manufactured Home and Manufactured Home Parks.** An existing house or park that does not meet the definition of a manufactured home or park as outlined in this Title shall be deemed to be a nonconforming use without regard to the standards of the district in which it is located. The nonconforming use may be continued provided that the continued use does not constitute a hazard to health and is not a public nuisance. The nonconforming use shall not be extended, enlarged, or changed unless the entire home or park is brought into compliance with current regulations for manufactured homes or new manufactured home parks. For a manufactured home park, the procedures shall be the same as those for establishing a manufactured home park in that district. In addition to the information and application for the district, the request shall also contain the following information:
 1. A draft written agreement from the applicant to insure that the improvements to the new area and the improvements to the existing area will be provided;
 2. A specific time schedule for all the improvements;
 3. A specific list of exceptions to the standards for new parks that cannot or will not be met when all improvements specified in the agreement are provided. Expansion of the park and the installation of improvements will not be initiated until the agreement and the other requirements of the district have been approved.
- g. **Travel Trailers and Recreational Vehicles.** Travel trailers and recreational vehicles shall not be installed in manufactured housing parks or subdivisions as a dwelling unit. The use of travel trailers and recreational vehicles shall be allowed only in recreational vehicle parks, campgrounds, mobile home parks or combined manufactured housing parks, all licensed by the city/county health department as defined in the state of Wyoming Mobile Home Park and Campground regulations.
- h. **Manufactured Homes on Single Platted Properties or Tracts.** Manufactured homes are permitted on any platted residential property or tract subject to the provisions of this section. This section does not apply to homes placed in manufactured home parks. Homes to be placed on a property or tract shall meet the following requirements:
 1. The home shall be sited in such a fashion that it meets all the requirements of the district in which it is located. The home shall have the delivery system removed.

2. The home shall be installed on a permanent foundation constructed of masonry, concrete or other approved material and shall comply with the building code. The foundation system shall be designed and constructed to sustain, within the stress limitations specified in the building code, all loads specified in the building code. The installation instructions as provided by the manufacturer of the manufactured home shall be used to determine permissible points of support for vertical loads and points of attachment for anchorage systems used to resist horizontal and uplift forces. The foundation system design shall be stamped and signed by a Wyoming licensed professional engineer.
3. The house shall be built to the current HUD code for this zone as referenced in the federal manufactured housing construction and safety standards. Skirting and permanent perimeter enclosures shall be installed. Skirting shall be of material suitable for exterior exposure and contact with the ground. Permanent perimeter enclosures shall be constructed of materials as required by the building code for regular foundation construction. Skirting shall be installed in accordance with the skirting manufacturer's installation instructions. Skirting shall be adequately secured to assure stability, to minimize vibration and susceptibility to wind damage, and to compensate for possible frost heave.
4. Where retaining walls are used as a permanent perimeter enclosure, they shall resist the lateral displacements of soil or other materials and shall conform to the building code as specified for foundation walls. Retaining walls and foundation walls shall be constructed of approved treated wood, concrete, masonry or other approved materials or combination of materials as for foundations as specified in the building code. Siding materials shall extend below the top of the exterior of the retaining or foundation wall or the joint between siding and enclosure wall shall be flashed in accordance with the building code.
5. The structure shall have a pitched roof, with a slope of not less than a nominal three inch vertical rise for each twelve (12) inches of horizontal run. Roof material shall consist of nonreflective material customarily used for conventional dwellings including but not limited to fiberglass shingles, composition shingles or tile material. Roof materials shall not include flat or corrugated sheet metal, except for manufactured metal roof panels.
6. The structure shall have a roof overhang of not less than eight inches measured from the vertical side of the home.
7. The structure shall have siding material consisting of wood or wood products, stucco, brick, rock, horizontal lap steel or aluminum or horizontal lap vinyl.
8. The structure shall be a minimum of 24' along the widest part of the structure's shortest axis.
9. The structure shall be constructed in accordance with the most recent version of the HUD code. However, no home will be permitted under this section if it was built prior to the year 2000.

Section 8. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 9. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Residential Uses																									
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P				P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P				P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P				P				
Cottage Lots				C	C	C	C	P	P			P				P	P				P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C			P				
Dormitories					C	A						P				P	P				P				
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P			P				
Live/Work					C	P		C	A	P	P	P				P	P	P	C		P				
Mixed-use Dwelling										P	P	P				P	P	P	C		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A				P				
Urban Loft Building									C	P	C	C				C	P				P				
Manufactured housing parks		C		C	C	C															P				
Civic Uses																									
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A	C		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A	C		P				
Cemeteries	A									A	A	P	C		C	A	A	A			P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A	C		P				
Educational facilities											P	P			P		A	A	C		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A	P		P				
Developed Athletic Field or Stadium											C		C		C		C	C	P		P				
Service Uses																									
Service Business - Limited										P	P	P				A	P	P	P		P				
Service Business - General										C	P	P				C	C		P		P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P			P				
Animal Care - Kennel	P	C									P		P						P		P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C				P				
Family Child Care Home (FCCC)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P			P				
Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P			P				
Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P	P		P				
Emergency Shelter											P		C												
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P	P		P				

P = Use permitted by right
(blank = prohibited use)

A = use permitted after administrative review

C = Use permitted after conditional discretionary review

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

Overlay District - uses subject to base zoning district

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Services Uses (cont.)																									
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C	P		P				
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C	P		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	P	C	C	C		C	C	C		P				
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P			P				
Lodging, Hotel / Motel											P	P					P	P	P		P				
<u>Campground</u>	C	C									C		P						C		P				
<u>Recreational Vehical Park</u>	C	C									C		P						C		P				
Medical Care, Clinic and Office										P	P	P				C	P	P	P		P				
Medical Care, Hospital															P			P	P		P				
Mini Storage					C	C					P	C	P	P		C	C	P							
Storage, Yard													C	P					C		P				
Employment Uses																					P				
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P	P		P				
Commercial Uses																									
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P	P		P				
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A	P		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C	P		P				
Warehouse Retail (> 100K)											P	P	P				P		P		P				
Grocery Store <45K										P	P	P	P				P	P	P		P				
Supermarket > 45K											P	P	P				P	C	P		P				
Outdoor Sales, Limited										A	P	A				A	A	A	C		P				
Outdoor Sales, Seasonal										C	A	C				C	C	C	C		P				
Outdoor Sales, Event or Display Area										C	A	C				C	C	C	C		P				
Outdoor Sales											C		C	C			C		C		P				
Bars and liquor stores										C	C	P			A		C	C		P	P				
Automobile Service Repair										C	P	C	P	P			C	C	P		P				
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P	P				
Automobile Service Station - General											P	C	P	P				C	P		P				
Automobile Service Station – Large-scale											C		C	P					P		P				

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

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ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Commercial Uses (cont.)																									
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P	P				
Food Service – General (2K – 4K)										C	P	P					P	P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P	P		P				
Industrial Uses																									
Data Center										C	C	C	P	P			C	P	P						
Limited Industrial										A	A	P	P	P	P	A	P	P	P		P				
Moderate Industrial												C	P	P			C	P	P		P				
General Industrial													C	P					P		C				
Industrial														C					C		C				
Limited Outdoor Storage													P	P	C			A	P		C				
Outdoor Storage													C	P				C			C				
Impoundment Yards													P	P			C	C			C				
Salvage yards													C	C							C				
Junk yards														C							C				
Air cargo terminals																				P	C				
Aircraft sales, repair, service, storage and relating uses																				P	C				
Railroad yards and maintenance buildings													P	P					P		C				
Public Service Uses																									
Commercial and Public Parking Facility												P			P		P	P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P	P				
Military																				P	P				
Recycling Services											C		P	P			C	C	C		P				
Transportation facilities											C		P	P	P				P	P	P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	A	P				
Agriculture Uses																									
General Agriculture	P																			P	P				
Limited Agriculture	P	P																		P	P				
Agricultural equipment or product sales	C																				P				
Commercial stables, arenas, and show barns	C	C																			P				
Nurseries, landscaping	P	P									C		P	P			C				P				

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

Overlay District - uses subject to base zoning district



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

OCTOBER 6, 2025

STAFF REPORT

REQUEST: A text amendment amending the Unified Development Code to define recreational vehicle parks and campgrounds, designate zone districts for their operation, create specific use standards for recreational vehicle parks campgrounds, and revise manufactured home and parks regulations as necessary

CASE NUMBER: PLTA-25-2

PREPARED BY: Charles W. Bloom, AICP, Planning and Development Director, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments amending sections 1.4.3, 1.4.4, 5.1.4, 5.7.10, 5.8.2 of the Unified Development Code to define Recreational Vehicle Parks and Campgrounds, designate zone districts for their operation, create specific use standards for Recreational Vehicle Parks Campgrounds, and revise Manufactured Home and Parks Regulations as necessary as outlined in this staff report, noting the requests meets the review criteria of UDC 2.4.1.d.

STAFF UPDATE:

At the September 15, 2025, meeting there was discussion regarding the recreational vehicle park and campground development standards, specifically, the following:

1. Clarifying that the one-acre minimum lot area to be allowed be comprised of camping areas and recreational vehicle spaces.
2. Clarification that water and sewer requirements for short term and long-term recreational vehicle spaces.
3. Ensuring that the junk and nuisance provisions of municipal code applied to short- and long-term recreational vehicle sites.
4. Grammatical corrections regarding spaces occupied for more than 180 days

Discussion centered around the development standards proposed in UDC section 5.7.10. Below are proposed modifications to the prior proposed language. Staff has included a "Clean" version and "Track Changes" detailing the modified standards. The September 15, 2025, staff report is attached, and the other proposed ordinance elements (Definitions, permissibility, and modification to UDC 5.8.2) remain unchanged.

PROPOSED MODIFICATION:Clean Version:

Below is how the entirety of the section will read with all proposed changes incorporated. A track changes version follows.

“5.7.10 Recreational Vehicle Parks and Campgrounds

In districts where recreational vehicle parks and campgrounds are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. The minimum lot area shall be one (1) acre and may be comprised of campground facilities, recreational vehicle park facilities, or a combination thereof.
- b. All property lines and street frontages shall have a level 2 landscape buffer as specified in UDC 6.3.5.b.
- c. Accessory uses such as laundry buildings, service retail stores, manager's offices, storage buildings, caretaker facilities, cabins, and other uses common with recreational vehicle parks and campgrounds shall be permitted.
- d. A network of vehicular accessways shall be provided and individual sites shall not have direct access to a public street. All accessways shall be paved with either asphalt, concrete, permeable pavers, or a combination thereof. Accessways shall not encroach into a required landscape buffer, except as necessary to provide access to the site.
- e. A developed outdoor recreational area(s) shall be provided and shall be at least 10% of the gross development area or 4,500 square feet, whichever is greater. Outdoor recreational spaces shall be comprised of playgrounds, picnic areas, trails, sports facilities, and similar amenities.
- f. One fenced pet area(s) per acre of developed site shall be provided and shall be at least 700 square feet in area.
- g. At least one (1) canopy tree within fifteen (15) feet of each space shall be provided.
- h. Designated areas for tents or cabins shall provide a minimum campsite area of five hundred (500) square feet per tent or cabin. Campsite areas may be consolidated when tents or cabins are clustered, provided that the required square footage per unit is maintained, and the area is exclusive of drive aisles, parking spaces, or common access ways.
- i. No recreational vehicle occupying any recreational vehicle space shall have permanent additions of any kind. Skirting of recreational vehicles is permissible provided such skirting shall not attach the recreational vehicles permanently to the ground.
- j. No recreational vehicle space shall be occupied by a recreational vehicle classified as a nuisance pursuant to section 8.60.080 of municipal code,
- k. Each recreational vehicle space shall have water and sewer service available for connection at the individual recreational vehicle site,
- l. Spaces occupied for more than one hundred and eighty (180) consecutive days shall:
 1. only be permitted only within designated long-term stay areas of the recreational vehicle park,
 2. include one detached individual storage structure per space, not exceeding 160 square feet in floor area. All storage structures shall be approved in conjunction with a site plan and designed with consistent materials, colors, and architectural elements to ensure a unified appearance.
 3. only be occupied by units that:

- i. are skirted with materials designed for weather protection and visual uniformity,
 - ii. are self-contained units,
 - iii. are manufactured within the last 20 years,
 - iv. display a valid Recreation Vehicle Industry Association (RVIA) certification seal verifying compliance with the applicable ANSI or HUD recreational vehicle construction standards in effect at the time of manufacture, and
 - v. do not have permanent additions, such as room extensions, porches, or attached garages or carports.
- m. Recreational vehicle parks not meeting the definition of temporary use per this Code shall comply with the development standards of this section.”

Detailed Tracked Changes Version:

Below is a detailed track changes version of the amendments based on discussion at the September 15, 2025, meeting clarifying all proposed changes based on prior discussion.

1. *The minimum lot area shall be one (1) acre and may be comprised of campground facilities, recreational vehicle park facilities, or a combination thereof.*

This requires the area of the park to be a minimum of one-acre in size. This clarifies that the park can be one-acre in size and a mixture of camping and recreational vehicle sites.

2. *All property lines and street frontages shall have a level 2 landscape buffer as specified in UDC 6.3.5.b.*

A level 2 buffer is a 15' wide area planting area with the following landscape options:

- Two deciduous shade or six-foot evergreen trees for each 50 linear feet of buffer or
- One deciduous shade or six-foot evergreen tree and 2 ornamental trees for each 50 linear feet of buffer; plus 3 shrubs for every 10 linear feet of buffer

3. *Accessory uses such as laundry buildings, service retail stores, manager's offices, storage buildings, caretaker facilities, cabins, and other uses common with recreational vehicle parks and campgrounds shall be permitted.*

This provision clarifies that accessory uses common to a campground and recreational vehicle park are permitted as accessory uses. Accessory uses must be subordinate to the use of the land as a recreational vehicle park or campground.

4. *A network of vehicular accessways shall be provided and individual sites shall not have direct access to a public street. All accessways shall be paved with either asphalt, concrete, permeable pavers, or a combination thereof. Accessways shall not encroach into a required landscape buffer, except as necessary to provide access to the site.*

CLCPH requires that parks have all-weather surfacing for operation and licensing. Thei provision requires paving which improves drainage, reduces dust, and increases accessibility within the park Individual spaces do not require paving.

5. *A developed outdoor recreational area(s) shall be provided and shall be at least 10% of the gross development area or 4,500 square feet, whichever is greater. Outdoor recreational spaces shall be comprised of playgrounds, picnic areas, trails, sports facilities, and similar amenities.*

This requires that common open space must be provided as part of the development. For a one-acre recreational vehicle park recreation facilities could be comprised of a playground sport court, community gathering space, or picnic area.

6. *One fenced pet area(s) per acre of developed site shall be provided and shall be at least 700 square feet in area.*

This requires one pet area per acre. Pursuant to UDC 1.4.2.f, any fractional result shall be rounded up to the next consecutive whole number (e.g.: 1.2 rounds up to 2).

7. *At least one (1) canopy tree within fifteen (15) feet of each space shall be provided.*

This provision is intended to establish a tree canopy in the park to provide shade for users. These are not in addition to the general landscaping standards and count towards internal landscaping area.

8. *Designated areas for tents or cabins shall provide a minimum campsite area of five hundred (500) square feet per tent or cabin. Campsite areas may be consolidated when tents or cabins are clustered, provided that the required square footage per unit is maintained, and the area is exclusive of drive aisles, parking spaces, or common access ways.*

This section is intended to provide adequate spacing and campsite area per space. Provisions have been made to allow for clustering in group camping or cabin areas.

9. *No recreational vehicle occupying any recreational vehicle space shall have permanent additions of any kind. Skirting of recreational vehicles is permissible provided such skirting shall not attach the recreational vehicles permanently to the ground.*

This section prohibits any permanent additions from being constructed on a space. Likewise, it prohibits skirting from being permanent skirting that affixes a vehicle to the ground.

10. *No recreational vehicle space shall not be occupied by a recreational vehicle classified as a nuisance pursuant to section 8.60.080 of municipal code.*

This subsection has been added to not allow any junk or nuisance vehicles to occupy a short- or long-term recreational vehicle sites. This was relocated from the long-term stay section, 12 below.

11. *Each recreational vehicle space shall have water and sewer service available for connection at the individual recreational vehicle site*

This subsection has been added and makes the water and sewer connection requirement applicable to all recreational vehicle sites, not just long-term stay. This was relocated from the long-term stay section, section 12, below.

12. ~~Spaces occupied~~ *occupied* ~~for more than one hundred and eighty (180) consecutive days shall:~~
 - a. *only be permitted only within designated long-term stay areas of the recreational vehicle park,*
 - b. *include one detached individual storage structure per space, not exceeding 160 square feet in floor area. All storage structures shall be approved in conjunction with a site plan and designed with consistent materials, colors, and architectural elements to ensure a unified appearance.*
 - c. *only be occupied by units that:*

- ~~b.i. be are~~ skirted with materials designed for weather protection and visual uniformity,
- ~~c.ii. be occupied only by are~~ self-contained units,
- ~~d.iii. be are~~ manufactured within the last 20 years,
- ~~e.iv. display a valid Recreation Vehicle Industry Association (RVIA) certification seal verifying compliance with the applicable ANSI or HUD recreational vehicle construction standards in effect at the time of manufacture,~~
- ~~f. not be occupied by a recreational vehicle classified as a nuisance pursuant to section 8.60.080 of municipal code, and~~
- ~~g.v. do~~ not have permanent additions, such as room extensions, porches, or attached garages or carports.

This section has been modified to read better, clarify site requirements and occupation requirements, and reorder for readability (relocate storage units to this list)

~~13. Recreational vehicle spaces designated for long-term occupancy shall include one detached individual storage structure per space, not exceeding 160 square feet in floor area. All storage structures shall be approved in conjunction with a site plan and designed with consistent materials, colors, and architectural elements to ensure a unified appearance.~~

This has been relocated to the long-term stay section, section 12, above.

~~14.13.~~ Recreational vehicle parks not meeting the definition of temporary use per this Code shall comply with the development standards of this section.

This clarifies that facilities proposed for periods exceeding 14-days are considered permanent uses and require conformance with the development standards. City/County Health does license and inspect all temporary and permanent facilities.

INFORMATION PROVIDED SEPTEMBER 15, 2025, MEETING THAT REMAINS UNCHANGED:

New definitions to be inserted in subsection 1.4.3, Defined Terms

Recreational Vehicle (RV). A vehicle or unit primarily designed for human habitation for recreation or travel, which may include a motor home, camper, travel trailer, or park model recreational vehicle.

Self-Contained Unit. A recreational vehicle equipped with its own water supply, sanitary facilities, and wastewater containment, capable of independent habitation without reliance on shared utilities, except for electrical or water hookups.

New definition to be added to 1.4.4.a, Descriptions of Uses of Land and Buildings, Residential Uses

Manufactured Home Park. See Manufactured Housing Park.

Amendment to existing definition in 1.4.4.a, Descriptions of Uses of Land and Buildings, Residential Uses

Manufactured housing parks. An area of land under one fee ownership, where designated spaces for manufactured homes are rented for use as a principal dwelling unit, and which may provide associated facilities for common use.

New definitions to be inserted in subsection 1.4.4.c, Service Uses

Campground. A Service Use accommodating overnight stays in tents, cabins, or other non-motorized shelters.

Combined Manufactured Housing Park. A Residential Use comprised of a manufactured housing park that, in addition to accommodating manufactured homes, has been licensed and has maintained a license, by the city/county health department to allow recreational vehicles to occupy independent spaces on the same site. Such facilities are recognized as nonconforming uses and may not be established in the City.

Recreational Vehicle Park. A Service Use providing accommodations for recreational vehicles, travel trailers, motor homes, dependent travel units, and park model recreational vehicles.

Permissible Locations (Use Table)

These uses are proposed in several zoning districts. They would be allowed by right in the LI (Light Industrial) and SS (Support Services) districts and would require conditional use approval in the AG (Agriculture), AR (Agricultural Residential), CB (Community Business), and BP (Business Park) districts. The conditional use process allows an additional level of review, including public comment, to ensure that adequate measures have been taken to mitigate potential affects to nearby properties. Staff also recommends allowing them as conditional uses in the CB district to give visitors convenient access to nearby shopping, dining, and entertainment.

Recreational Vehicle Park:

Permitted: LI (Light Industrial), SS (Support Services)

Conditional Use: AG (Agriculture), AR (Agricultural Residential), CB (Community Business), BP (Business Park)

Campground:

Permitted: LI (Light Industrial), SS (Support Services)

Conditional Use: AG (Agriculture), AR (Agricultural Residential), CB (Community Business), BP (Business Park)

Modification to UDC 5.8.2, Manufactured Home Parks

This amendment cleans up language that has been rolled into the UDC from previous iterations of municipal code. This terminology has not been updated with the UDC and was carried over primarily from 1982 and 1988 versions of the municipal code. The present section references an obsolete document - the State of Wyoming Mobile Home Park and Campground regulations. This amendment reflects the CLCPH licensing requirements and the present licensing of combined manufactured housing parks. Several combined manufactured housing parks exist within City limits today.

Travel Trailers and Recreational Vehicles. Travel trailers and recreational vehicles shall not be installed in manufactured housing parks or subdivisions as a dwelling unit. The use of travel trailers and recreational vehicles shall be allowed only in recreational vehicle parks, campgrounds, or mobile home parks or combined manufactured housing parks, all licensed by the city/county health department as defined in the state of Wyoming Mobile Home Park and Campground regulations.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

The proposed amendment addresses an emerging issue not fully anticipated in the Comprehensive Plan, but does align with its general goals and policies, specifically responding to community desires and concerns. This change comes after challenges were identified in conjunction with discussions surrounding a recent work camp proposal where it was identified that work camps were viewed as more of a permanent use and provisions for that use did not exist.

The Comprehensive Plan promotes "Quality Workforce Housing" per Policy 2.5.C, which states that work force housing should be constructed of durable materials that minimize maintenance and will stand the test of time, is designed with architectural details that are functional and attractive, and designed with a character and scale that is compatible with the surrounding neighborhood. Recreational Vehicle Parks as proposed in this amendment, do uphold this policy.

This proposed text amendment meets this criterion.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601. The governing body of any city or town, by ordinance, may:

(d) All regulations shall be made:

(i) In accordance with a comprehensive plan and designed to:

- (A) Lessen congestion in the streets;
- (B) Secure safety from fire, panic and other dangers;
- (C) Promote health and general welfare;
- (D) Provide adequate light and air;
- (E) Prevent the overcrowding of land;
- (F) Avoid undue concentration of population; and
- (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.

Assessment: This amendment proposes amending the zoning code in accordance with the comprehensive plan and is in accordance with the purposes of state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment provides for a lodging option for visitors and a residential option for people and families who desire to live in these types of facilities for extended periods of time. These parks can provide economic benefits to the City.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments amending sections 1.4.3, 1.4.4, 5.1.4, 5.7.10, 5.8.2 of the Unified Development Code to define Recreational Vehicle Parks and Campgrounds, designate zone districts for their operation, create specific use standards for Recreational Vehicle Parks Campgrounds, and revise Manufactured Home and Parks Regulations as necessary as outlined in this staff report, noting the requests meets the review criteria of UDC 2.4.1.d.

ATTACHMENTS:

1. September 15, 2025, Staff Report and Attachment



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

September 15, 2025

STAFF REPORT

REQUEST: A text amendment amending the Unified Development Code to define recreational vehicle parks and campgrounds, designate zone districts for their operation, create specific use standards for recreational vehicle parks campgrounds, and revise manufactured home and parks regulations as necessary

CASE NUMBER: PLTA-25-2

PREPARED BY: Charles W. Bloom, AICP, Planning and Development Director, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments amending sections 1.4.3, 1.4.4, 5.1.4, 5.7.10, 5.8.2 of the Unified Development Code to define Recreational Vehicle Parks and Campgrounds, designate zone districts for their operation, create specific use standards for Recreational Vehicle Parks Campgrounds, and revise Manufactured Home and Parks Regulations as necessary as outlined in this staff report, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The UDC is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed amendment is being made in follow-up to PLTA-25-1 which remove the term and permissibility of "Work Camps" from the Code which prohibited their establishment within the City limits. During this discussion it was noted that permanent recreational vehicle and campground regulations did not exist in City zoning and rules and regulations were needed.

PROPOSED AMENDMENTS:

This amendment modifies several sections of the UDC and generally addresses the following four components:

1. Creation of definitions and modification of existing definitions related to recreational vehicles and campgrounds.
2. Amending the Use table to set the permissibility of recreational vehicle parks and campgrounds.
3. Modification to existing UDC 5.8.2, Manufactured Home Parks.
4. Creating development standards for recreational vehicle parks and campgrounds.

These amendments are not intended to allow temporary facilities or “work camps,” but are intended to enable permanent facilities to be constructed. Cheyenne Laramie County Public Health (CLCPH) license and inspect camping facilities annually through their Campground Program. The 2009 Cheyenne – Laramie County Campground Regulations are available online on their website and are also attached to this staff report.

As proposed in this amendment, and when considering the Campground Regulations of CLCPH, a recreational vehicle park developed on a relatively square one-acre parcel of land (approximately 228' x 191') could result in a recreational vehicle park comprised of approximately 17-18 spaces 20'x 50' spaces accessing an internal 24' wide drive aisle. This includes 15' bufferyards on all sides, allowing for 15' separation from all units per CLCPH licensing rules, one dog run, and 4,500 sq. ft. of recreational area.

Definitions:

This amendment includes adding and modifying UDC definitions as shown below to provide clarification related to the amendment. The updated definitions align with nationally accepted standards and incorporate CLCPH's definitions from their Campground Regulations. Undefined terms shall have their ordinary and customary meanings unless the context of the word or phrase indicates otherwise.

New definitions to be inserted in subsection 1.4.3, Defined Terms

Recreational Vehicle (RV). A vehicle or unit primarily designed for human habitation for recreation or travel, which may include a motor home, camper, travel trailer, or park model recreational vehicle.

Self-Contained Unit. A recreational vehicle equipped with its own water supply, sanitary facilities, and wastewater containment, capable of independent habitation without reliance on shared utilities, except for electrical or water hookups.

New definition to be added to 1.4.4.a, Descriptions of Uses of Land and Buildings, Residential Uses

Manufactured Home Park. See Manufactured Housing Park.

Amendment to existing definition in 1.4.4.a, Descriptions of Uses of Land and Buildings, Residential Uses

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Campground. A Service Use accommodating overnight stays in tents, cabins, or other non-motorized shelters.

Combined Manufactured Housing Park. A Residential Use comprised of a manufactured housing park that, in addition to accommodating manufactured homes, has been licensed and has maintained a license, by the city/county health department to allow recreational vehicles to occupy independent spaces on the same site. Such facilities are recognized as nonconforming uses and may not be established in the City.

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These uses are proposed in several zoning districts. They would be allowed by right in the LI (Light Industrial) and SS (Support Services) districts and would require conditional use approval in the AG (Agriculture), AR (Agricultural Residential), CB (Community Business), and BP (Business Park) districts. The conditional use process allows an additional level of review, including public comment, to ensure that adequate measures have been taken to mitigate potential affects to nearby properties. Staff also recommends allowing them as conditional uses in the CB district to give visitors convenient access to nearby shopping, dining, and entertainment.

Recreational Vehicle Park:

Permitted: LI (Light Industrial), SS (Support Services)

Conditional Use: AG (Agriculture), AR (Agricultural Residential), CB (Community Business), BP (Business Park)

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Development Standards (UDC 5.7.10)

This amendment proposes additional development standards that would be reviewed by the City with a new facility request. The additional standards are in proposed to be created in a UDC section 5.7.10 and are summarized below.

1. *The minimum lot area shall be one (1) acre.*

This requires the area of the park to be a minimum of one-acre in size.

2. *All property lines and street frontages shall have a level 2 landscape buffer as specified in UDC 6.3.5.b.*

A level 2 buffer is a 15' wide area planting area with the following landscape options:

- Two deciduous shade or six-foot evergreen trees for each 50 linear feet of buffer or
- One deciduous shade or six-foot evergreen tree and 2 ornamental trees for each 50 linear feet of buffer; plus 3 shrubs for every 10 linear feet of buffer

3. *Accessory uses such as laundry buildings, service retail stores, manager's offices, storage buildings, caretaker facilities, cabins, and other uses common with recreational vehicle parks and campgrounds shall be permitted.*

This provision clarifies that accessory uses common to a campground and recreational vehicle park are permitted as accessory uses. Accessory uses must be subordinate to the use of the land as a recreational vehicle park or campground.

4. A network of vehicular accessways shall be provided and individual sites shall not have direct access to a public street. All accessways shall be paved with either asphalt, concrete, permeable pavers, or a combination thereof. Accessways shall not encroach into a required landscape buffer, except as necessary to provide access to the site.

CLCPH requires that parks have all-weather surfacing for operation and licensing. The provision requires paving which improves drainage, reduces dust, and increases accessibility within the park. Individual spaces do not require paving.

5. *A developed outdoor recreational area(s) shall be provided and shall be at least 10% of the gross development area or 4,500 square feet, whichever is greater. Outdoor recreational spaces shall be comprised of playgrounds, picnic areas, trails, sports facilities, and similar amenities.*

This requires that common open space must be provided as part of the development. For a one-acre recreational vehicle park recreation facilities could be comprised of a playground sport court, community gathering space, or picnic area.

6. *One fenced pet area(s) per acre of developed site shall be provided and shall be at least 700 square feet in area.*

This requires one pet area per acre. Pursuant to UDC 1.4.2.f, any fractional result shall be rounded up to the next consecutive whole number (e.g.: 1.2 rounds up to 2).

7. *At least one (1) canopy tree within fifteen (15) feet of each space shall be provided.*

This provision is intended to establish a tree canopy in the park to provide shade for users. These are not in addition to the general landscaping standards and count towards internal landscaping area.

8. *Designated areas for tents or cabins shall provide a minimum campsite area of five hundred (500) square feet per tent or cabin. Campsite areas may be consolidated when tents or cabins are clustered, provided that the required square footage per unit is maintained, and the area is exclusive of drive aisles, parking spaces, or common access ways.*

This section is intended to provide adequate spacing and campsite area per space. Provisions have been made to allow for clustering in group camping or cabin areas.

9. *No recreational vehicle occupying any recreational vehicle space shall have permanent additions of any kind. Skirting of recreational vehicles is permissible provided such skirting shall not attach the recreational vehicles permanently to the ground.*

This section prohibits any permanent additions from being constructed on a space. Likewise, it prohibits skirting from being permanent skirting that affixes a vehicle to the ground.

10. *Space occupation for more than one hundred and eighty (180) consecutive days shall:*
- a. be permitted only within designated long-term stay areas of the recreational vehicle park,*
 - b. be skirted with materials designed for weather protection and visual uniformity,*
 - c. be occupied only by self-contained units,*
 - d. be manufactured within the last 20 years,*
 - e. display a valid Recreation Vehicle Industry Association (RVIA) certification seal verifying compliance with the applicable ANSI or HUD recreational vehicle construction standards in effect at the time of manufacture,*
 - f. not be occupied by a recreational vehicle classified as a nuisance pursuant to section 8.60.080 of municipal code, and*
 - g. not have permanent additions, such as room extensions, porches, or attached garages or carports.*

This section sets specific standards for users occupying spaces for periods of time exceeding 180-days. Recreational vehicles used for long-term stays in the park must be located only in designated areas, be skirted with weather-protective and uniform materials, and be self-contained units manufactured within the last 20 years. Skirting with weather protective materials and uniform materials prevent the installation of plywood or other items. Self-contained units are defined in the ordinance and require these units to have functional water and sewer systems. The display of a valid RVIA certification seal confirms that at the time of manufacture the unit was constructed with applicable construction standards for recreational vehicles. All recreational vehicles are required to be operable and registered and permanent additions cannot be made to these units.

11. *Recreational vehicle spaces designated for long-term occupancy shall include one detached individual storage structure per space, not exceeding 160 square feet in floor area. All storage structures shall be approved in conjunction with a site plan and designed with consistent materials, colors, and architectural elements to ensure a unified appearance.*

For long-term sites, an outdoor storage space is required. This requires placement of outdoor storage structures that are approved in conjunction with a site plan. This also requires that storage units throughout the park match.

12. *Recreational vehicle parks not meeting the definition of temporary use per this Code shall comply with the development standards of this section.*

This clarifies that facilities proposed for periods exceeding 14-days are considered permanent uses and require conformance with the development standards. City/County Health does license and inspect all temporary and permanent facilities.

Modification to UDC 5.8.2, Manufactured Home Parks

This amendment cleans up language that has been rolled into the UDC from previous iterations of municipal code. This terminology has not been updated with the UDC and was carried over primarily from 1982 and 1988 versions of the municipal code. The present section references an obsolete document - the State of Wyoming Mobile Home Park and Campground regulations. This amendment reflects the CLCPH licensing requirements and the present licensing of combined manufactured housing parks. Several combined manufactured housing parks exist within City limits today.

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REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

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The proposed amendment addresses an emerging issue not fully anticipated in the Comprehensive Plan, but does align with its general goals and policies, specifically responding to community desires and concerns. This change comes after challenges were identified in conjunction with discussions surrounding a recent work camp proposal where it was identified that work camps were viewed as more of a permanent use and provisions for that use did not exist.

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This proposed text amendment meets this criterion.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601. The governing body of any city or town, by ordinance, may:

- (d) All regulations shall be made:
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- (C) Promote health and general welfare;
- (D) Provide adequate light and air;
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Assessment: This amendment proposes amending the zoning code in accordance with the comprehensive plan and is in accordance with the purposes of state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

“The amendment promotes the general health, safety and public welfare.”

This amendment provides for a lodging option for visitors and a residential option for people and families who desire to live in these types of facilities for extended periods of time. These parks can provide economic benefits to the City.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments amending sections 1.4.3, 1.4.4, 5.1.4, 5.7.10, 5.8.2 of the Unified Development Code to define Recreational Vehicle Parks and Campgrounds, designate zone districts for their operation, create specific use standards for Recreational Vehicle Parks Campgrounds, and revise Manufactured Home and Parks Regulations as necessary as outlined in this staff report, noting the requests meets the review criteria of UDC 2.4.1.d.

ATTACHMENTS:

1. 2009 Cheyenne – Laramie County Campground Regulations

2009

Cheyenne – Laramie County

Campground

Regulations



As Adopted by the Cheyenne – Laramie County Board of Health
October 2009

CHAPTER I
GENERAL PROVISIONS: AUTHORITY; APPLICABILITY; DEFINITIONS;
SEVERABILITY

Section 1. Authority.

Wyo. Stat. §§ 35-1-106, 35-1-303, 35-1-305, 35-4-201, 35-4-221, 35-4-222, and 35-4-224.

Section 2. Applicability.

- a. The following rules apply to any campground located in Laramie County, including any within any incorporated or unincorporated community.
- b. Any person maintaining, or offering for public or private use, any tract or parcel of land for temporary or permanent use must comply with these rules. This use means parking, either free of charge or by fee payment, of six (6) or more independent travel units or dependent travel units.
- c. Where city and/or county ordinances are in effect, the more stringent rule shall be followed.
- d. Where overnight camping is not approved, signs shall be posted in a clearly visible manner at intervals of no greater than fifty (50)' stating that "No Overnight Camping Allowed". These areas are to be monitored by the property owner and violators shall be reported to law enforcement for failure to comply.

Section 3. Definitions.

- a. "Approved" means acceptable to the health officer after his determination as to compliance with these rules.
- b. "Board of Health" means the regulatory board appointed by the Laramie County Commissioners and the Cheyenne City Council pursuant to Wyo. Stat. 35-1-301 *et seq.* The Board of Health is charged with governing the Cheyenne-Laramie County Health Department.
- c. "Campground" means an area available for overnight use by six (6) or more independent or dependent travel units.
- d. "Current inspection" means an inspection conducted within the last twelve (12) month period.
- e. "Dependent travel unit" means any conveyance designed to be used as a temporary or seasonal dwelling which does not have a flush toilet or shower. The unit may or may not contain a water tank. The unit's liquid wastes consist only of "gray water."

f. "Division" means the Division of Environmental Health, Cheyenne-Laramie County Health Department.

g. Flood zones are geographic areas that the FEMA has defined according to varying levels of flood risk. These zones are depicted on a community's Flood Insurance Rate Map (FIRM) or Flood Hazard Boundary Map. Each zone reflects the severity or type of flooding in the area. A 100 year flood zone is an area with a 1% annual chance of flooding.

h. "Gray water" means the liquid waste not containing fecal or other body wastes.

i. "Health Officer" means the administrator of the Cheyenne-Laramie County Health Department, or his officially designated representative

j. "Independent travel unit" means any conveyance designed to be used as a temporary or seasonal dwelling which has a flush toilet or shower. The unit has a sewage storage tank.

k. "Operable phone" means access to an emergency telephone for emergency services either directly or indirectly by radio or other approved method.

l. "Person" means an individual, partnership, corporation, joint stock company or any other association or entity, public or private.

m. "Portable sanitary toilet" means a portable unit used as a toilet that can be pumped and cleaned to maintain the facility in a sanitary manner.

n. "Public water supply" means any water supply being distributed by ten or more service connections used to furnish water for human consumption either in preparing foods or beverages for inhabitants of residences or business establishments or as defined in W. S. 35-11-103 (c) (viii). The source, treatment, waste disposal, distribution system, service connections, finished water storage and pumping stations are part of a public water supply.

o. "Sanitary station" means a facility provided for the emptying of sewage storage tanks and the flushing of sewage from storage tank hoses in independent travel units.

p. "Self-contained" means that a toilet or sewage storage tank is an integral part of the unit. (See above).

q. "Service building" means a building housing separate toilet and shower facilities for men and women, as well as a clean-up sink.

r. "Sewage" means the liquid and water-borne wastes derived from the ordinary living processes, including but not limited to human wastes and gray water.

s. "Solid waste" means all putrescible and non-putrescible solid refuse except human body wastes. Solid wastes include, but are not limited to, garbage, rubbish and ashes.

t. "Substantial compliance" means that all requirements of Chapter III, Sections 1, 2, 3, 5 and 7 have been met.

Section 4. Severability.

a. If any provision of these rules or the application thereof to any person is held invalid, the invalidity shall not affect other provisions or applications of these rules which can be given effect without the invalid provision or application and to this end, the provisions of these rules are severable.

CHAPTER II
REQUIREMENTS FOR PLAN SUBMISSION; PERMIT APPLICATION AND
ISSUANCE; AREA INSPECTION

Section 1. Approval of Plans and Specifications.

a. A person shall not construct, expand or modify any campground in a manner which would alter compliance with these rules without a plan approval from the health officer.

(1) One copy of the complete plans and specifications shall be filed with the Division at least thirty (30) days prior to the proposed date for bid letting or the start of construction. The Division shall review all plans and specifications within thirty (30) days of receipt to determine if they are in compliance with these rules.

(2) The Division shall review the information and complete a review sheet.

(3) A copy of the review sheet shall be sent to the applicant

(4) If approved, a letter of approval shall be sent to the applicant or submitter.

(5) If not approved, all copies of the plans and specifications shall be returned to the applicant or submitter with a letter of disapproval stating the reasons for such disapproval.

b. No plan shall be considered complete unless all of the following are included:

(1) Name, address and telephone number of the applicant, and the same information of a property owner if different from the applicant.

(2) A scaled site plan drawing that shall detail the entire area of the proposed campground, or the area dimensions of the modifications or expansion of the existing development. All boundaries for the campground and each unit space shall be clearly delineated.

(3) The number, location, size and designated use of all unit spaces shall be clearly indicated on the site plan drawing.

(4) A profile of the proposed drainage shall be included in the drawing. This shall reflect proper grading and drainage to prevent insect breeding sources and to provide all-weather access to the park.

(5) The floor plan of the service building(s) shall show the number and location of toilets, urinals, showers or baths, lavatories, laundry facilities, service sinks, doors and windows. Details of surface finishes on walls, ceilings and floors shall be included.

(6) Details of sanitary stations, storage buildings, trash stations and other proposed structures shall be clearly delineated.

(7) All equipment or appurtenances shall be designated by number in a schedule on the drawing for easy identification and location.

(8) A description for each numbered item in the drawing shall accompany the submitted plan.

(9) If construction will differ from the submitted plan, additional information describing the differences shall be submitted for approval. The same procedure shall be followed as stated in subsection (a) of this section.

(10) Zoning Clearance through the Laramie County or City of Cheyenne Zoning Offices.

(11) Plan review and application form.

(12) Inspection fees as required by the Division.

c. Codes and Standards that shall be followed in all new design and construction, except the design and construction of sewage and water facilities, are:

(1) International Building Code or other building code as adopted by the local jurisdiction.

(2) National Electrical Code or other electrical code as adopted by the local jurisdiction.

(3) International Plumbing Code or other plumbing code as adopted by the local jurisdiction.

(4) Wyoming DEQ Water Quality Rules and Regulations for Public Water and Sewer Systems.

Section 2. Permit to Operate. Any person operating a campground in Laramie County shall possess a current, valid permit from the Division. The permit shall be available for public viewing. Permits are not transferable from one person to another person, or to a location different from the original location of issuance.

a. Any person desiring to operate a permanent or temporary campground shall complete a written application for a permit on a form provided by the Division. A temporary permit shall not exceed 15 days.

(1) Upon receipt of a completed application

(A) For existing facilities, the health officer shall determine if a current inspection of the applicant's facility has been conducted. If he determines that no current inspection has occurred, the health officer shall arrange for an inspection, or

(B) For new construction, the health officer shall arrange for an inspection to determine conformance with the plans and specifications previously submitted and approved, and to determine compliance with these rules.

b. If, upon inspection, the campground is found to be in compliance with all rules, including water sample results, if required, a permit shall be issued.

c. The permit for a permanent campground shall be effective for a period of one year from the date of issuance. A permit may be renewed for a subsequent one-year period upon submission of a renewal application and fees, and if all requirements set forth under these rules continue to be met. Failure to renew the permit shall result in the closure of the permanent campground.

Section 3. Denial of a Permit.

a. Before a permit is denied, the Division shall give the applicant written notice of the intended action and the reasons for denial. Within 10 days of the denial, an applicant may supply evidence of correction of any item to the health officer, who shall conduct an inspection. If, upon inspection, the campground is found to be in compliance and eligible for a permit, the permit shall be issued.

b. Within twenty (20) days of the denial of a permit, the applicant may file with the Board of Health a written request for hearing. The hearing shall be conducted pursuant to regulations of the Board. At such hearing, to be held at a reasonable time after receipt of request, evidence shall be received for the purpose of determining whether or not such denial shall be upheld. The notification of and reason for the Board's decision shall be set forth in writing and sent to the applicant by means of registered or certified mail or hand delivery.

Section 4. Suspension or Revocation of a Permit.

a. After an opportunity for a hearing, a permit may be suspended or revoked by the health officer or by court action. The Health Officer shall give the operator thirty (30) days written notice of the intended action.

b. Within the thirty (30) day notice period, the operator shall be given an opportunity to show compliance with all lawful requirements for the retention of the permit.

c. The permit may be suspended or revoked if the campground is in violation of any of these rules, unless the operator has entered into a signed agreement as provided in Section 8(b) of this chapter.

d. The suspension or revocation shall become effective thirty (30) days from the date of the notice unless the operator requests a hearing within that time, or shows compliance with all lawful requirements for the retention of the permit

Section 5. Summary Suspension of a Permit.

a. A permit may be summarily suspended if the health officer determines that a condition exists that is an imminent hazard to the public health.

b. The Division shall include, within the suspension order, a finding that emergency action is required and shall detail the violations causing the emergency.

c. The operator shall have the right to a prompt post suspension hearing to determine if revocation is necessary. The operator shall request a hearing within five (5) days of the suspension. The Board of Health shall hold a hearing within ten (10) days of the receipt of the request.

Section 6. Reinstatement of a Permit.

a. After suspension or revocation of his permit, any operator may at any time apply in writing to the health officer for a reinstatement of the permit. A statement of compliance with the previously violated rules shall accompany the application.

b. After receipt of the completed application and statement, the health officer shall make an inspection within thirty (30) days.

c. The health officer shall reinstate the permit if he determines the campground to be in compliance with these regulations.

d. If the violations have not been satisfactorily corrected, the suspension or revocation of the permit shall be continued. The applicant may not reapply for inspection and reinstatement of the permit for a period of thirty (30) days.

Section 7. Hearings.

All hearings provided for in these rules shall be conducted in accordance with regulations of the Board. Appeal from any final order of the Cheyenne-Laramie County Board of Health shall be taken as provided by the Wyoming Administrative Procedure Act.

Section 8. Inspection of Campgrounds.

a. At least once every twelve (12) months, the health officer shall inspect every campground located within Laramie County, Wyoming.

b. If the health officer discovers a violation of any item in these rules, he shall notify the

operator in writing of the violation(s). The health officer may enter into a signed agreement for correction of the violations by a certain date, not to exceed ninety (90) days. If the operator does not enter into a signed agreement for correction of the violations by a certain date, the health officer shall take action as provided by Section 4.

c. The health officer shall reinspect the campground on or after the completion date set in the signed agreement, but not later than thirty (30) days after the completion date. If the health officer finds that the violations have not been corrected, he shall take action as provided in Section 4. If the operator can show good cause for the failure to comply with the agreement, the time allowed for corrections may be extended.

d. If the manager or operator is not present at the time of the inspection, a copy of the written report shall be sent by registered or certified mail or hand delivery to the operator. This shall serve as official notification to the operator of the findings at the time of the inspection.

e. If the health officer receives a complaint that the campground may be in violation of these rules, the health officer shall investigate the complaint, and may conduct an inspection. If the health officer discovers a violation, he shall take action as provided in Section 8b.

f. Temporary campgrounds may be inspected on a daily basis during the term of the permit.

CHAPTER III OPERATIONAL RULES APPLICABLE TO ALL CAMPGROUNDS

Section 1. Generally.

- a. Campgrounds shall be located outside of any FEMA floodway or FEMA100 year flood zone.
- b. All campgrounds shall be graded and well-drained.
- c. The campground shall be adequately lighted at night to prevent injury.
- d. Each campground unit shall have its boundaries clearly defined.
- e. Each campground shall have an all weather roadway that provides access by emergency vehicles to any unit space.
- f. All travel trailers, truck campers, tenting units, or motor homes shall be located on unit spaces specifically designated for that use. A special parking area may be provided for parking or storing unoccupied independent or dependent travel units. In this case, the unit space designation requirement shall be waived.
- g. Adequate all-weather walkways shall be provided to each designated unit.
- h. A minimum spacing of fifteen (15) feet in any direction shall be provided between all units or other structures.
- i. Each space shall have easy access to a public roadway and be accessible to emergency vehicle traffic.
- j. Rules and regulations governing the park shall be given to each owner/operator of each unit using the campground. Rules shall include information on sewage disposal, solid waste disposal, leash requirements for all pets and a statement that failure to comply, will result in expulsion from the campground.
- k. All tents shall be placed within four hundred (400) feet of a service building, or within four hundred (400) feet of a portable sanitary toilet in a temporary campground.
- l. An attendant and/or operable phone shall be available at all times for temporary campgrounds.

Section 2. Water Supplies.

- a. Each unit space shall have access, within four hundred (400) feet, to drinking water provided by the campground.

b. All campgrounds that are not supplied by a public water supply shall provide a bacteriological water test prior to operation and at least quarterly showing that no total coliform or e-coli is present in the water supply. Additionally a nitrate test shall be done prior to open and at least every three years showing that nitrate levels are less than 10 parts per million.

c. If a water transport vehicle is used, it shall be licensed and inspected by the Wyoming Department of Agriculture or other licensing authority.

Section 3. Refuse Collection, Storage and Disposal.

a. The collection, storage and disposal of refuse shall be of a manner and frequency to avoid creating an insect or rodent harborage, health hazard or odor nuisance. Solid waste shall not be piled outside of containers.

b. Refuse containers shall be in a location of reasonable access to the residents.

c. Refuse shall be collected and disposed of at least once per week.

d. Containers shall be constructed of approved materials and shall have tight fitting lids.

e. Separate recycling bins are strongly recommended.

Section 4. Rodents, Insects and Vector Harborage.

a. All harborage for rodents and insects within the campground shall be eliminated and prevented.

b. The campground shall remain free of standing water.

Section 5. Sewage Connections and Disposal.

a. A sanitary station shall be provided within every permanent campground that provides unit space for independent travel units. Water shall be made available at the sanitary station for washing out hoses and tanks and be labeled as non-potable.

b. All sewage installations shall be maintained in working condition.

c. Gray water shall be disposed of in the same manner as all other sewage.

d. Portable sanitary toilets may be used for temporary campgrounds if they are supplied by an approved vendor, in adequate number (1 per 20 units), maintained in a sanitary manner and the contents are deposited in an approved sewer system.

e. Temporary campgrounds shall provide information to all units as to where they can dump sewage holding tanks.

Section 6. Pets.

- a. No dogs, cats or other animals shall be permitted to freely roam in a campground area.
- b. Pet waste shall be routinely and properly disposed of to prevent fly breeding.

Section 7. Service Buildings.

- a. Each permanent campground which provides unit spaces for dependent travel units shall provide a service building.
- b. A unit space serving a dependent travel unit shall not be located farther than four hundred (400) feet radially from a service building. A unit space further than this distance shall be designated for and used only by independent travel units.
- c. The number of facilities required within the service building shall be in a ratio as stated in the following table:

Number of Parking sites	Toilets		Urinals	Lavatories		Showers		Other Fixtures
	Men	Women	Men	Men	Women	Men	Women	Service/dump sink
01-20	1	2	2	2	2	2	2	1
21-40	2	3	3	3	3	2	2	1
41-60	3	4	3	4	4	3	4	1
61-80	4	5	4	5	5	4	5	1
81-100	4	6	4	5	5	5	6	1

All unit spaces intended or designated for dependent travel units within four hundred (400) feet radially from the service building shall be considered dependent upon those facilities.

- d. The showers shall be separate from the toilet room. The shower room shall be provided with seating and clothes hanging facilities.
- e. A service sink(s) shall be provided for disposal of gray water and liquid wastes, and for clean up and maintenance of the service building(s).
- f. The service building shall be of permanent construction and equipped with lighting and heating. Positive mechanical ventilation shall be provided in the shower area.
- g. The interior construction of the service building shall be smooth and cleanable. The walls, ceilings, and floors shall be covered with moisture resistant materials. Slip

retardant materials shall be used on all floors. All floors, walls and ceilings shall be kept clean and in good repair.

h. All windows, doors or other openings shall be screened.

i. Hot and cold running water shall be provided to the required plumbing fixtures at all times in the service building.

j. The service building and toilet facility area shall be available to all residents and visitors at all times.

k. The service building shall be adequately lighted.

l. If laundry facilities, such as washers and dryers, are provided, they shall be located in a separate room used exclusively for this purpose.

**"RESOLUTION ADOPTING THE CHEYENNE-LARAMIE COUNTY BOARD OF
HEALTH'S CAMPGROUND REGULATIONS"**

WHEREAS, W.S. § 35-1-303, AUTHORIZES THE City of Cheyenne-Laramie County Board of Health to enact rules and regulations pertaining to the prevention of disease and promotion of health within Laramie County Wyoming;

WHEREAS, the operation of campgrounds carries the potential to affect the health safety and general welfare of citizens within the confines of Laramie County Wyoming and further represents a potential source for disease and injury to the citizens of Laramie County. It is the intent of the Cheyenne-Laramie County Board of Health that these regulations operate to minimize and/or ameliorate such sources of disease and injury.

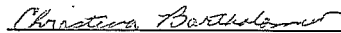
WHEREAS, the Wyoming Department of Health recently repealed similar rules and regulations governing campgrounds.

WHEREAS, the Cheyenne-Laramie County Board of Health has initiated the rule-making process pursuant to W.S. § 16-3-103 to adopt regulations governing campgrounds, which process requires 45 days public notice and a reasonable opportunity for public comment before the Cheyenne-Laramie County Board of Health may adopt such regulations.

NOW THEREFORE BE IT RESOLVED BY THE CHEYENNE-LARAMIE COUNTY BOARD OF HEALTH, that the Cheyenne-Laramie County Campground regulations are adopted as reflected in the attached copy of the 2009 Cheyenne-Laramie County Campground Regulations to be fully effective upon filing of the regulations with the Laramie County Clerk.

PRESENTED, READ AND ADOPTED this 20th day of Sept, 2009.

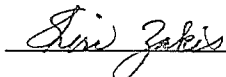
CITY OF CHEYENNE-LARAMIE COUNTY BOARD OF HEALTH



Chris Bartholomew, Chairman

ATTEST:

Reviewed and approved as to form:



Sheri Zakis, Clerk to the Board



Sylvia Hackl, Deputy Laramie County Attorney

LARAMIE COUNTY CLERK
CHEYENNE, WY.
2009 OCT 21 PM 2:00